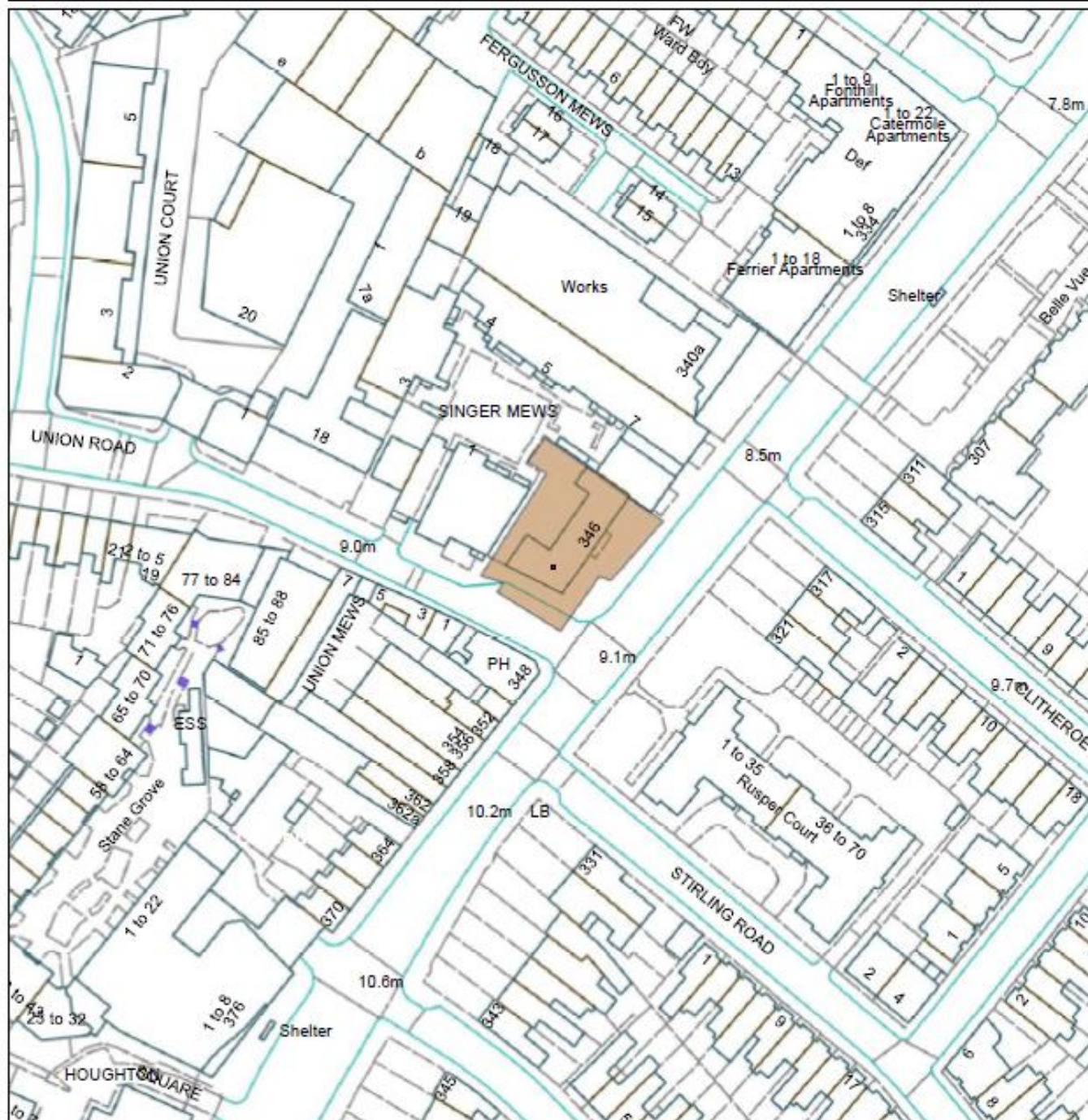


LAMBETH PLANNING APPLICATIONS COMMITTEE



Case Number:	24/01346/FUL
Application Address:	346 Clapham Road - London SW9 9AP



Scale: 0 12.5 25 50 Meters

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Application for Planning Permission

Application ref:	24/01346/FUL
Site:	346 Clapham Road, London, SW9 9AP
Ward:	Stockwell West & Larkhall
Description:	Demolition of a 4-storey office building (Use Class E) and redevelopment of the site involving the erection of a 7-storey building to provide office floorspace (Use Class E(g)(i)) and 30 residential units (Use Class C3) together with relocation of the substation, the provision of cycle and refuse store.
Applicant:	Clap LP
Agent:	SM Planning
Case officer:	Jacques du Plessis
Drawing nos.	See appendix 1
Reason for PAC referral:	The application is reported to the Planning Application Committee in accordance with the committee's terms of reference as it relates to the provision of at least 10 dwellings and building where the floor space to be created by the development is at least 1,000 square metres.

Recommendations:

1. Resolve to **grant conditional planning permission** subject to the completion of a satisfactory deed under Section 106 of the Town and Country Planning Act 1990 containing the planning obligations as set out in this report, addenda and/or PAC minutes.
2. Agree to delegate authority to the Director of Climate, Planning and Transport to: (a). Finalise the recommended conditions as set out in this report, addenda and/or PAC minutes; and (b). Negotiate, agree and finalise the planning obligations as set out in this report, addenda and/or PAC minutes pursuant to Section 106 of the Town and Country Planning Act 1990.
3. In the event that the Committee resolves to refuse planning permission and there is a subsequent appeal, delegated authority is given to the Director of Climate, Planning and Transport, having regard to this report, addenda and/or PAC minutes, to propose planning conditions and to negotiate and complete a document containing obligations pursuant to Section 106 of the Town and Country Planning Act 1990 in order to meet the requirement of the Planning Inspector.
4. In the event that a satisfactory Section 106 deed is not completed within six months of the date of the Committee meeting, delegated authority is given to the Director of Climate, Planning and Transport to refuse planning permission for failure to enter into a Section 106 deed providing for the obligations considered necessary to make the development acceptable in planning terms as identified in this report, addenda and/or the PAC minutes.

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1. Summary of application

1.1 Executive summary

- 1.1.1 This application by SM Planning (the agent) on behalf of Clap LP (the applicant) is for demolition of the existing office building to construction of a mixed-use scheme comprising office floorspace at ground floor and flats on the upper floors.
- 1.1.2 The principle of providing a mix-use development in this highly sustainable location is accepted. The development would provide 30x new homes in private tenure and a cash in lieu contribution of £390,000.00 for off-site provision of affordable housing, which has been agreed following a comprehensive review of the applicant's viability assessment. Amendments were secured during the application by officers to remove the originally proposed basement. Whilst this has resulted in less replacement office floorspace than originally proposed, the scheme as originally proposed was not financially viable to make any contribution towards affordable housing. The amended mix of land uses is considered to be the most optimum in respect of delivery of key planning benefits of additional housing, a contribution towards off-site affordable housing, and replacement office floorspace.
- 1.1.3 The layout, height, architectural design and approach are suitable for the site and surroundings, with a good standard of accommodation provided, and no harm caused to surrounding heritage assets.
- 1.1.4 A number of objections were received relating to the impact of the development on neighbouring properties. Careful consideration was given to the assessment which concluded that the proposal would not have unacceptable amenity impacts.
- 1.1.5 The site enjoys an excellent public transport accessibility rating of 6a. Whilst the development prioritises car-free living, it provides 2x accessible parking spaces off-site on Union Road within a short distance to the site. The development's cycle parking provision is deemed acceptable.
- 1.1.6 The London Plan energy hierarchy has been followed. A carbon emissions reduction of 78% for residential and 51% for non-residential against Building Regulations Part L 2021 has been achieved, with an anticipated carbon offset contribution of £14,905 to meet the 100% zero carbon target.
- 1.1.7 The scheme would introduce opportunities for both landscaping and ecological improvements. The proposal is targeting an Urban Greening Factor of 0.4 (any shortfall will result in a financial contribution given site limitations) and is anticipated to achieve a Biodiversity net gain exceeding the 10% nett gain required.
- 1.1.8 The development is expected to meet all technical requirements related to noise, vibration, air quality, land contamination, sustainability, flood risk mitigation, waste, and recycling.
- 1.1.9 The proposed heads of terms establish a comprehensive set of planning obligations that effectively mitigate the potential impacts of the development. Financial contributions towards provision of off-site affordable housing, open space, employment and training, and transport matters as mitigation for the development have been secured. These obligations have been negotiated, considering the specific characteristics of the scheme and adhering to the statutory tests for Section 106 obligations outlined in the Community Infrastructure Levy Regulations 2010.

- 1.1.10 Overall, the scheme optimises the potential of this brownfield site through a design-led, housing-led mixed-use development. Officers are satisfied that the proposal complies with the Development Plan when considered as a whole, and that no material considerations weigh against the grant of permission.

1.2 Relevant designations

Type of designation	Applicable designation
Air Quality Management Area	Applicable
Archaeological Priority Areas	Applicable
Area of Open Space Deficiency	Applicable
Helipad Safeguarding	CAA Helipad Safeguarding Zone
Public Transport Accessibility Level (PTAL)	6a
Smoke Control Area	Applicable
Tunnel Safeguarding line	Applicable

1.3 Key information

Site area

Total site area (sqm)	Total site area (hectares(ha))
845sqm	0.0845

Floorspace comparison

	Use description	Use class	Floorspace (sqm) (Gross Internal Area)
Existing	Office	E(g)(i)	972
Proposed	Commercial, Business and Service	E	259
	Dwellings	C3	2,750
	Substation, plant	-	56
Total proposed			3,009

Housing details

	Residential type	No. of bedrooms per unit					No. of habitable rooms
		Studio	1	2	3	Total	
Proposed	Low cost rented (Social rent)	0	0	0	0	0	0
	Intermediate (London Shared Ownership)	0	0	0	0	0	0
	Private / market	0	11	15	4	30	84
Total proposed		0	11	15	4	30	84

Affordable housing

Payment in lieu towards delivering off-site affordable housing	
Amount	Percentage equivalent (target 35%)
£390,000.00	8%

Parking

Car parking		
	Car parking spaces (general)	Car parking spaces (disabled)
Existing	9	0
Proposed	0	2 off-site spaces

Bicycle spaces		
	Short stay	Long stay
Existing	0	0
Proposed	4	62

Environmental performance

Energy		
	Policy target	Proposed
Percentage of on-site carbon savings beyond Part L of Building Regulations (2021)	35%	79%
Percentage of on-site carbon savings achieved through energy efficiency measures	Residential - 10% Non-residential - 15%	13% 6%
Off-site reduction (%) and/or carbon offset contribution	Shortfall to net-zero carbon target	Currently anticipated to be £14,905.00
Unregulated carbon emissions	Major developments should calculate and minimise unregulated carbon emissions	Details provided, and are acceptable
Sustainability		
BREEAM score	Excellent	Excellent
Urban Greening Factor (UGF)	0.4	Targeting 0.4 (Any shortfall will result in a financial contribution)
Biodiversity Net Gain (BNG)	Positive	Positive

Legal services clearance

Name / position	Lambeth department	Date sent	Date received	Report cleared	Comments in para:
Christopher Allingham Principal Property, Planning & Regeneration Lawyer	Legal Services	29/10/2025	08/01/2026	08/01/2026	Throughout document. All addressed.

1.4 Summary of consultation

- 1.4.1 Letters were sent to adjoining properties and notices were placed nearby the site. 143x properties were consulted on the application. At the time of writing, there were 30x responses in objection and 2x responses in support of the application. One petition was received representing 20 residents in Singer Mews objecting to the proposals.

2. Site context and proposal

2.1 Site description

The application site

- 2.1.1 The application site ('the Site') is approximately 845sqm in size and it is located on the west side of Clapham Road on a prominent corner at the junction with Union Road, as shown in Figure 1 below.

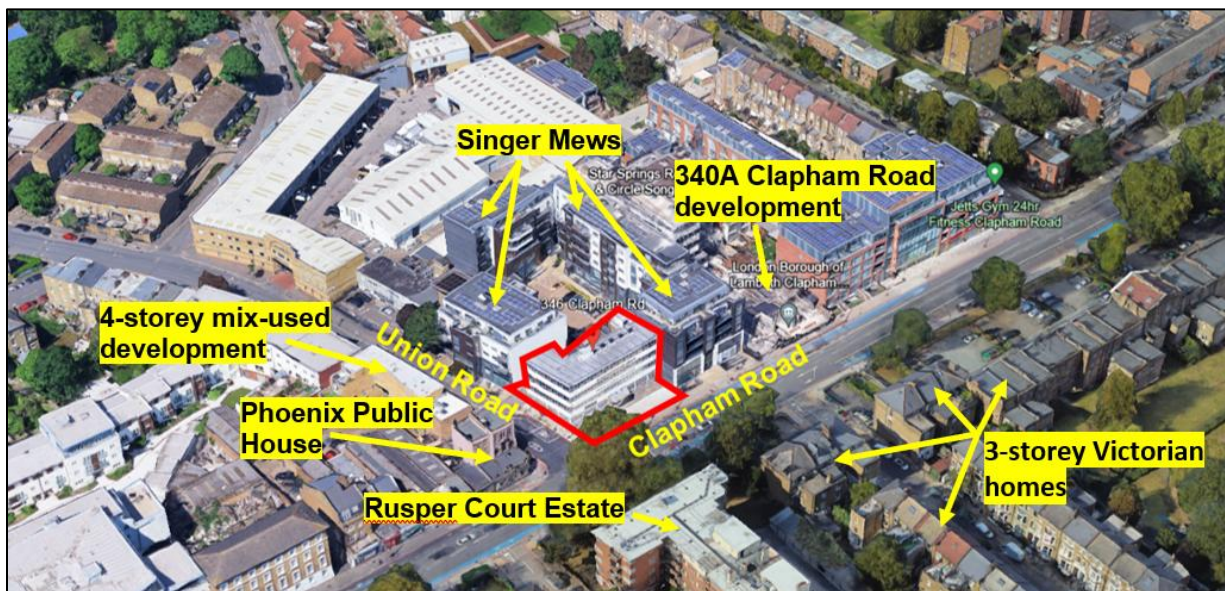


Figure 1: Google Earth view of the Site outlined in red, and the wider context

- 2.1.2 The Site contains a 4-storeys mid-century office building with large forecourt and street frontage to both Clapham Road and Union Road. To the rear of the building there are 9x car parking spaces. The existing building provides approximately 972sqm of Gross Internal Area (GIA) of office floorspace. The footprint of the building measures 270sqm and covers 32% of the Site.



Figure 2 and 3: Photographs of the existing building at the Site (front and side)

The surrounding area

- 2.1.3 The surrounding area is characterised as commercial and residential uses. To the north and west of the Site there is Singer Mews development which comprises commercial floorspace at ground floor and residential flats on the upper floors varying in height between 5 to 6 storeys. Beyond Singer Mews to the north there is a recently completed mix-use development at 340a Clapham Road comprising commercial floorspace at lower and ground floor and residential flats on the upper floors. The building varies in height and goes up to 9-storeys.
- 2.1.4 To the east of the Site and, on the other side of Clapham Road, there are 3-storey Victorian homes and a 5-storey 20th century residential block known as Rusper Court Estate.
- 2.1.5 To the south of the Site and on the other side of Union Road there is 3-storey locally listed public house known as the Phoenix, a 2-storey end of terrace building, and 4-storey mixed use building with commercial floorspace at ground floor and residential flats on the upper floors.

The Site designations

Employment

- 2.1.6 The Site falls on the edge of centre location, approximately 200m north of the Stockwell District Centre. It is also located east of a Key Industrial and Business Area (KIBA).

Heritage

- 2.1.7 The Site does not have any statutory or locally listed building. It is opposite the Phoenix Public House which is a locally listed building at 348 Clapham Road.
- 2.1.8 The Site does not sit within a conservation area, but it is close to two, they are the Clapham Road Conservation approximately 30 metres to the south-east and the Sibella Road Conservation area approximately 40 metres to the south-west of the Site.
- 2.1.9 The Site is located within an Archaeological Priority Area.
- 2.1.10 The Site is within the designated local views north-west of Brixton Landmarks (Lambeth's Town Hall's tower and St Matthew's church towers) and views north and north-east to the City (LLP Policy Q25 (b)).

Transport

- 2.1.11 Clapham Road (A3) forms part of the Transport for London Road Network (TLRN).
- 2.1.12 The Site is located within Controlled Parking Zone (CPZ), Code S, operating Monday to Friday between 8:30am and 17:30pm.
- 2.1.13 The Site has Public Transport Access Level (PTAL) is 6a (on a scale of 0 to 6b, where 6b represents the greatest level of access to public transport services).

Environment

- 2.1.14 The Site is located within Flood Zone 1.
- 2.1.15 The Site is within an area of open space deficiency for district parks and is in an area of deficiency in access to nature. It is also within an air quality focus area.

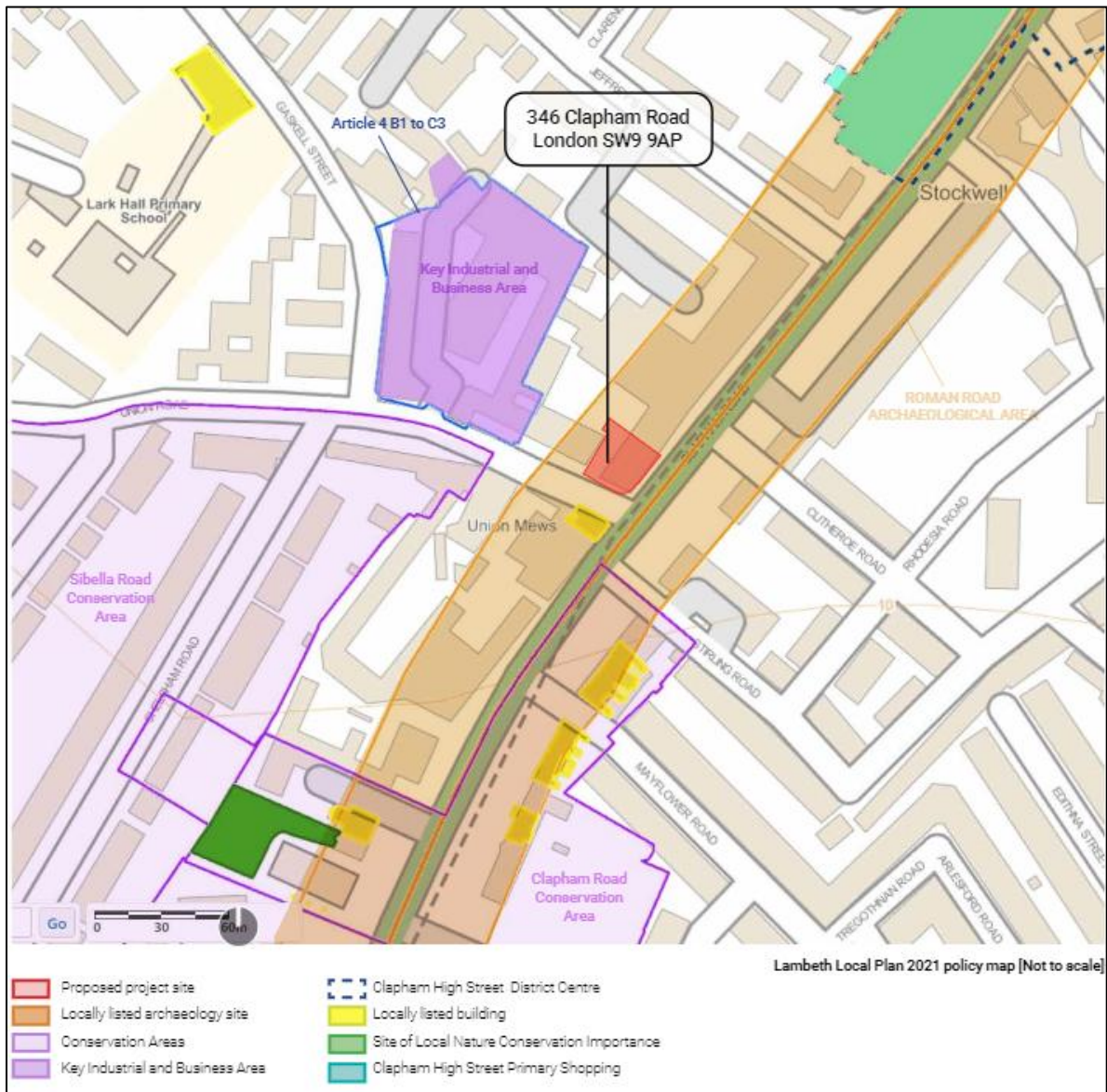


Figure 4: Planning policy constraints map

2.2 Proposal description

- 2.2.1 The submitted drawings and documents for the application can be found at: [Simple Search \(lambeth.gov.uk\)](https://lambeth.gov.uk) with the planning application reference 24/01346/FUL.
- 2.2.2 Full planning permission is sought for demolition of the existing 4 storey office building (see Figure 2 and 3 above) and the construction of a new building that would comprise 259sqm of commercial floorspace at ground level and 30x self-contained residential flats over the upper floors (see Figure 5 below).
- 2.2.3 The proposed building would be 7-storeys in height (32.11m) and it would cover most of the Site (86%).
- 2.2.4 One new street tree is proposed to be planted along Clapham Road and the existing tree on Union Road will be retained. The building would have green roof. The highest part of the building would have solar panels fitted over the green roof to improve the sustainability of the development.

- 2.2.5 The external materials for the part of the building facing Union Road would be brown brick, bronze coloured metal at the base of the building, and dark metal railings and windows.
- 2.2.6 The external materials for the part of the building on the corner between Union Road and Clapham Road would be green ceramic cladding with natural colour variation, mid-toned metal railing and window frames, sliding metal mesh privacy panels to balconies and roof and blue ceramic cladding at the base of the building.
- 2.2.7 The external materials for the part of the building facing Clapham Road would be mid-light brown/buff brick, dark metal railings, bronze coloured metal at the base of the building, and sliding metal mesh privacy panels to balconies and roof.



Figure 5: View of the proposed building from Union Road and Clapham Road junction (Source: DAS)

Amendments

- 2.2.8 The applicant submitted additional information to address some of the issues mentioned during the consultation. The additional information included:
- Changes to proposed housing mix and submission of updated plans
 - Reduction of office floorspace and removal of basement
 - Changes to the layout of homes
 - Responses and further amendments to the viability information
 - Responses to the issues raised by Arup (Council's appointed consultant on daylight and sunlight impacts) in their initial review of the daylight and sunlight assessment
 - Response to fire safety concerns
- 2.2.9 These documents provided clarification and supplementary technical information in support of the application. As some of the changes have materially altered the application a further consultation was carried out between 20.06.2025 and 04.07.2025.

- 2.2.10 The ground floor landscaping scheme has been amended which delivers less trees than initially proposed as the trees were located outside the application site on TfL highway land. Proposals now indicate that the tree on Union Road will be retained and there is room to deliver one new tree along Clapham Road within the application site. Re-consultation on these changes were not considered necessary.

2.3 Relevant planning history

- 2.3.1 The Site has extensive planning history. All submitted applications can be found at: [Simple Search \(lambeth.gov.uk\)](https://www.lambeth.gov.uk/planning) with the planning application reference 24/01346/FUL under related cases tab.

Application site

- 2.3.2 The relevant planning history for the Site is as follows:

- 2.3.3 17/06126/P30 – Prior Approved Refused – Decision date: 15.02.20218

Prior Approval for the change of use from an office (Use Class B1(a)) to 20 residential units.

Reason for refusal:

1. The proposals fail to comply with Schedule 2, Part 3, Class O.2 (1) (a) of The Town and Country Planning (General Permitted Development) (England) (Amendment) Order 2015 (as amended 2016). The proposed development would be unacceptable in transport and highways terms, for the following reasons: (ii). The proposed development would provide insufficient and inappropriate cycle parking storage; (iii). Insufficient information has been provided to demonstrate the servicing of the proposed development would not have unacceptable impact on the local transport network; and (iiii). In the absence of a completed Section 106 agreement removing the rights of future occupiers from obtaining on-street car parking permits, providing car club membership for future residents for a period of four years, and securing at least two disabled car parking spaces, the proposed development would have an adverse impact upon the operation of the local transport network due to the increased pressure on parking on the surrounding streets. The proposed development would fail to achieve the objectives within Section 4 of the National Planning Policy Framework (2012).

- 2.3.4 18/01637/P3O – Prior Approval Approved – Decision date: 04.06.2018

Prior Approval for the change of use from an office (Use Class B1(a)) to 20 residential units.

- 2.3.5 19/04768/FUL – Application Refused – Decision date: 30.09.2021

Demolition of existing building and erection of a part 6 and part 7 storey building plus basement to provide 2,877sqm of office space (Use Class E(g)(i)) and 9 residential units (Use Class C3), with provision of cycle/refuse stores and a substation.

Reason for refusal:

1. The proposal would result in a significant increase of office space (1,905sq.m) and insufficient information has been provided to demonstrate there are no preferred sites to accommodate such increase within a town centre. The proposed large increase of office space would be contrary to Policies E1 and SD7 of the London Plan 2021 and Policy ED7 of the Lambeth Local Plan 2021.

2. No evidence has been submitted to demonstrate the proposed office would provide flexible workspace and affordable workspace on site. This conflicts with Policy ED1 and ED2 of the Lambeth Local Plan 2021 and Policies E1, E2 and E3 of the London Plan 2021.
3. The proposed 4 x one-bedroom flats would be of poor quality, by reason of their insufficient gross internal area, undersized bedroom, insufficient build in storage space and under provision of private amenity space. In addition, the quality of the provided small outdoor space would be poor given that its triangle shape would make most of the space unusable. This is contrary to Policy H5 of the Lambeth Local Plan 2021 and Policy D6 of the London Plan 2021.
4. The proposed building would not be of quality design, by reason of its siting, building line, design, appearance and materials. The proposed forward projection along Clapham Road would not align with and it would appear overly dominant in relation to the neighbouring building at 342 Clapham Road (also known as Singer Mews) and when viewed from the junction of Clapham Road and Union Road. The appearance of the proposed Clapham Road façade would be poor, and not well detailed. The proposal fails to enhance or preserve the prevailing local character. As such the proposal is contrary to Policies Q5 and Q7 of the Lambeth Local Plan 2021.
5. The proposed development, by reason of its scale and massing and proximity to neighbouring residential properties, would adversely impact on amenity due to the loss of outlook, sense of enclosure and sunlight and daylight received by residential occupiers in 2 Union Road, 4 to 7 Singer Mews and 342 to 344 Clapham Road. As such, the proposal would be contrary to Policies Q2 of the Lambeth Local Plan 2021 and D6 of the London Plan 2021.
6. The site is within an area of open space deficiency for district parks and is in an area of deficiency in access to nature. The application makes no on site provision for open space, it has not been demonstrated it is not feasible to provide this and no payment in lieu has been secured via s106 agreement. As such the proposal is contrary to Policy EN1 of the Lambeth Local Plan 2021.
7. The application has not demonstrated sufficient greening and biodiversity gain, the proposed the urban greening factor UGF of 0.23 is significantly under the target of 0.4. The proposal is contrary to Policies G5 and G6 of the London Plan 2021 and Policy EN1 of the Lambeth Local Plan 2021.
8. The application has failed to demonstrate that sustainable design standards are integral to the design, construction and operation of the development. The commercial element has not demonstrated a minimum BREEAM certificate of Excellent and the residential development does not provide Home Quality mark or Passive house design standards. The submitted information is insufficient and contains inaccuracies. The proposed development would fail to comply with Policy EN4 of the Lambeth Local Plan 2021 and Policies SI2, SI4 and SI5 of the London Plan 2021.
9. The application has the potential to impact on highways safety and result in increase on-street parking pressure. In the absence of the benefit of a healthy routes financial contribution, travel plan, cycle hire membership, car club membership and car permit

capping legal agreement the application is considered to be unacceptable as it could result in an increase in parking pressure in the area contrary to Policies T1, T3, T4 and T6 of the Lambeth Local Plan 2021 and Policies T2, T4, T5 and T6 (T6.1 and T6.2) of the London Plan 2021.

10. In the absence of Employment and skills plan and financial contribution secured via a s106 legal agreement, the proposed development has not demonstrated that local employment opportunities would be maximised. This is contrary to Policy ED15 of the Lambeth Local Plan 2021 and Policy E11 of the London Plan 2021.

Surrounding area

- 2.3.6 4-14b Union Road and 342-344 Clapham Road - Ref: 06/03159/FUL – Granted permission – Decision date: 29.03.2018

Redevelopment of the site, involving the erection of four blocks of part-six/part-seven storeys (including lower ground floor level) to create 65 residential units, 12 work-live units and four office units (962sq.m of B1 floorspace), together with provision of 14 car-parking spaces, cycle parking and associated landscaping.

- 2.3.7 340A Clapham Road – Ref: 16/06668/FUL – Granted permission – Decision Date: 21.06.2017

Redevelopment of the site involving demolition of existing building and erection of a building up to 9-storeys in height plus basement level to provide offices (Use Class B1) at lower ground and ground floor, a cafe (Use Class A1) at ground floor and 62 residential units (Use Class C3) at upper floor levels, together with provision of cycle parking, refuse storage and amenity space.

- 2.3.8 330-340 Clapham Road – Ref: 13/03248/FUL – Granted permission – Decision Date: 20.01.2014

Demolition of the existing buildings and redevelopment of the site, involving the erection of a building of part-five/part six storeys (including lower ground floor level) fronting Clapham Road, stepping down to four storeys (including lower ground floor level) fronting Jeffreys Road, a three storey building on the site of 19 Jeffreys Road, and 19 three and four-storey houses within the site and 1 three-storey house fronting Jeffreys Road to provide a mixed use scheme incorporating office (B1 Use Class), retail (A1 Use Class), and cafe (A3 Use Class) uses to provide 3,149sqm of commercial space, together with 79 residential units (including 31 affordable units) and associated access, servicing, refuse storage, car and cycle parking, and landscaped amenity areas. (This application is a departure from policy S3 of the Core Strategy 2011). Consultation and engagement

2.4 Pre-application engagement

- 2.4.1 The Applicant has submitted a pre-application request to discuss the proposed development before it was submitted. The design of the elevations, use, transport, standard of accommodation for residential and co-living aspect of the development have been discussed during the pre-application discussions.

2.5 Application consultation - public consultation

- 2.5.1 Public consultation was undertaken in accordance with statutory and Council requirements.
- 2.5.2 Letters were sent to a total of 152 properties surrounding the Site. A site notice was displayed around the Site on 12.07.2024, and a press notice was posted on 08.07.2024. The first public consultation ended on 23.07.2024.

- 2.5.3 A second public consultation was carried between 20.06.2025 and 04.07.2025 given the amendments summarised in Section 2.2.8 of this report.
- 2.5.4 In total, representations were received from 32 properties, comprising of 30 comments objecting and two comments in support. These are summarised and responded to below:

OBJECTING COMMENTS	
Summary of comments	Officer response
Land use	
The proposed commercial floorspace is not needed there is no demand for it.	The proposed office space has been reduced. The quantum is considered acceptable, see the 'Principle of land use' section at paragraphs 4.2.8 to 4.2.14 of the report.
Affordable housing	
Lack of affordable housing.	The proposed development would provide a contribution towards off-site provision of affordable housing. Detailed responses to the raised issues are discussed and assessed under the 'Affordable housing' section of the report at paragraphs 4.2.23 – 4.2.29.
Design	
The height of the building (7-storeys) is at odds with the prevailing height in the surrounding area.	The proposed development has been designed to ensure that it optimises the development of this brownfield site for housing, and so that it fits in well with the existing build layout, form, scale, and character and that it positively responds to the nearby heritage assets. Detailed responses to the raised issues are discussed and assessed under 'Design' section of the report at paragraphs 4.2.37 – 4.2.47.
Amenity impact	

• Loss of daylight and sunlight due to increase in the height of the building. • Daylight and sunlight report has errors. • Noise and disturbance. • Impact on Rights of Light (RoL).	The scheme has been assessed against the relevant planning policy at regional and local level which sets clear criteria to ensure that all aspect of development does not result in adverse impact. Detailed responses to the raised issues are discussed and assessed under ‘Amenity impact’ section of the report at paragraphs 4.2.93 – 4.2.127. Rights of Light are not material planning considerations.
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SUPPORTING COMMENTS	
Summary of comments	Officer response
Land use	
The scheme would make productive use of long-disused land.	Noted.
Housing	
Severe housing shortage in London and this is a well-connected site and suitable for higher-density development. It would deliver modern, well-insulated homes and increase overall housing supply.	Noted.
Massing, design	
The proposed height is considered appropriate and consistent with nearby buildings, including Singer Mews. The design is regarded as fitting well with the character of the area.	Noted.
Amenity impact	
Positive economic impact on local shops and amenities from additional residents. Some consider concerns about limited daylight impacts to be outweighed by the wider public benefits of providing much-needed homes.	Noted.

2.6 Application consultation – external, internal, and other consultees

External consultees

Summary of comments	Officer response
Health and Safety Executive (HSE)	
Absence of a Required Firefighting Shaft The building exceeds 18m in height, which triggers the requirement for a firefighting shaft with a firefighting lift, in line with ADB Vol.1 clause 15.2 and BS 9999.	Revised drawings were submitted on 6 November 2025 to address the concerns raised as it required changes to floor layouts. Should permission be granted, an updated Fire Strategy has been secured (see Condition 18).
Inappropriate Connection Between Residential and Commercial Areas The design currently allows communication between residential (upper storeys) and commercial/lower ground spaces. This conflicts with BS 9991 requirements for mixed-use buildings, which state that residential and commercial occupancies must be separated by fire-resisting construction.	
Incomplete Fire Statement (Planning Gateway One Requirement) The Fire Statement (dated June 2024) is incomplete and does not explain the fire-safety strategy for a new Higher-Risk Building. Future submissions must follow MHCLG (now DLUHC) Fire Statement guidance and be prepared by a competent person.	
Sprinkler Provision Concerns The Fire Statement proposes partial residential sprinklers (L1–L6) and full sprinklers to commercial floors. ADB requires residential buildings above 11m to have sprinklers throughout the entire building, including within individual flats (communal areas may be exempt if fire-sterile).	
Historic England – Greater London Archaeological Advisory Service	
No further assessment or conditions are necessary.	Noted.
London Fire Brigade	

No comments or observations to made.	Noted.
Metropolitan Police (Designing out Crime)	
Pre-Commencement and Pre-Occupation conditions are recommended to ensure end-to-end compliance with Secured by Design.	Should permission be granted, the recommended conditions have been secured (see Condition 27).
Transport for London (TfL) Infrastructure Protection	
No objection but conditions requesting submission of foundations and design of the building are recommended.	Should permission be granted, the recommended conditions have been secured (see Condition 13).
TfL (Spatial planning)	
No objection but short stay cycle parking should be removed form TLRN and required works should be secured.	The cycle parking was removed from TLRN. Should permission be granted, the pavement would be reinstated by the S278 works, to be secured through the S106 deed.
UK Power Networks	
No objection. Property & Consents at UK Power Networks wanted to know if access to the substations will not be affected by the building works/alterations, as UK Power Networks require access 24/7.	The applicant confirmed that the access would still be granted.

Internal consultees

Summary of comments	Officer response
Conservation and Design	
No objection.	Comments have been considered throughout the report in 'Design', 'Strategic and local views', and 'Heritage impact' sections at paragraphs 4.2.37 - 4.2.47, 4.2.48 - 4.2.52, and 4.2.53 - 4.2.68 retrospectively.
Daylight and Sunlight (Arup)	
Arup has undertaken a review on behalf of the Council, and they agreed with the applicant conclusion that levels of daylight and sunlight would be acceptable or good for an urban context.	Comments have been considered throughout the report in 'Amenity' and 'Standard of accommodation' sections at paragraphs 4.2.94 - 4.2.118 and 4.2.164 - 4.2.168 retrospectively.

Development Infrastructure	
No objection. Please consult Development Infrastructure (DI) on a S106 agreement.	Noted.
Energy / Sustainability (Blewburton)	
Blewburton has undertaken a review on behalf of the Council. Good level of detail has been provided to demonstrate that all relevant targets will be met. There is no objection subject to securing a carbon offset payment and several detailed conditions.	Comments have been considered throughout the report in 'Sustainable design and construction' section of the report at paragraphs 4.2.69 - 4.2.92. Should permission be granted, the recommended planning obligations and conditions have been secured (see Conditions 8, 20, 25, 30, 31, 32, 33, 34, 35, 36, 37, 38 and 39).
Environmental Protection (RSS)	
RSS has undertaken a review on behalf of the Council, there is no objection subject to securing several conditions relating to land contamination, noise, air quality.	Comments have been considered throughout the report in 'Amenity' and 'Standard of accommodation' sections at paragraph 4.2.93 - 4.2.127 and 4.2.157 - 4.2.184 retrospectively. Should permission be granted, the recommended conditions have been secured (see Conditions 12, 14, 15, 19, 20, 29 and 43).
Flood Risk	
Acceptable subject to conditions.	Comments have been considered throughout the report in 'Flood risk and drainage' section of the report at paragraphs 4.3.12 - 4.3.15. Should permission be granted, the recommended conditions have been secured (see Conditions 17 and 46).
Transport	
Accessibility and density The proposed development site has a PTAL rating of 6(a) which is classified as excellent. Trip generation The trip generation associated with the proposal is not considered to have significant implications on local highway and footway. Public transport network will be able to absorb any net increase given the excellent PTAL rating, but TfL would state otherwise, if this was not the case.	Comments have been considered throughout the 'Transport' section of the report at paragraphs 4.2.128 - 4.2.156 below. Should permission be granted in line with the recommendation, the recommended planning obligations and conditions will be secured accordingly (see Conditions 11, 12, 40, 41 and 45).

Cycle parking The proposed development provides the required number of long and short-stay cycle parking spaces, ensuring that 5% of spaces are for adapted / larger cycles and approximately 25% spaces are Sheffield stands. Please secure cycle hire for minimum of 3-years for future residents. Car parking The development would be car free. 2x disabled car parking spaces can be secured off-site but a contribution of £40,000 is needed. Please secured car club membership for minimum of 3-years for future residents. Travel plan Submitted travel plan is accepted. Please secure the plan and its monitoring through s106. Healthy routes The likely contribution to be secured would be £25,000.00 for design development work on Slade Green Healthy Neighbourhood.	
Viability (Avison Young)	
The amended proposal can viably provide a financial contribution of £390,000.00.	Comments have been considered throughout the 'Housing' section of the report at paragraphs 4.2.23 - 4.2.36 below.
Waste Contractor	
No objection.	Noted.

Other consultees

Summary of comments	Officer response
Bell Ribeiro-Addy MP	
Concerns raised with: • Height of the development • Impact the building would have on light and privacy • Worry about the proposed commercial spaces • Lack of affordable housing	Noted.

3. Application assessment

3.1 Planning policies

- 3.1.1 Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires planning decisions to be made in accordance with the development plan unless material considerations indicate otherwise.
- 3.1.2 The development plan for the Site is the London Plan 2021 ('LP'), and the Lambeth Local Plan 2021 ('LLP').
- 3.1.3 The National Planning Policy Framework (NPPF) was last revised in 2024. This document sets out the Government's planning policies for England including the presumption in favor of sustainable development. It is a material consideration in the determination of all applications.
- 3.1.4 The application has been considered against all relevant national policies and development plan policies, as well as any relevant guidance. A list of the main relevant policies and guidance has been set out in **Appendix 2** to this report.
- 3.1.5 The report addresses compliance with specific development plan policies. The planning balance section of the report sets out an assessment of whether, overall, there is compliance with the development plan.

3.2 Main planning considerations

- 3.2.1 The main planning issues raised by the application that the Committee must consider are:

- Principle of land use
- Housing
- Design
- Strategic and local views
- Heritage impact
- Sustainable design and construction
- Amenity impact
- Transport
- Standard of accommodation
- Trees, landscaping and ecology

Principle of land use

Presumption in favour of sustainable development

- 3.2.2 The NPPF sets the presumption in favour of sustainable development, and this is reflected in LLP Policy D2 and the other policies in the plan. LLP Policy D2 states that the Council will always work proactively with applicants jointly to find solutions which mean that proposals can be approved wherever possible and to secure development that improves the economic, social and environmental conditions in Lambeth.
- 3.2.3 According to the most recent Housing Delivery test (published 12 December 2024), Lambeth delivered 74% of its housing target in the three years between 2020-2023. Pursuant to paragraph 79 (c) of the NPPF, Lambeth is therefore subject to sanctions which involve preparing an Action Plan to demonstrate how we will accelerate housing delivery, plan for

additional housing and is subject to a strengthened presumption in favour of sustainable development when assessing and determining planning applications.

- 3.2.4 The 'tilted balance' within paragraph 11(d) of the NPPF is also now engaged. This means that the development plan policies relating to the provision of housing are out-of-date and permission should therefore be granted to applications involving the provision of sustainable housing development, unless:

"(i) The application of policies in this Framework that protect areas or assets of particular importance provides a strong reason for refusing the development proposed; or

(ii) any adverse impacts of doing so would significantly and demonstrably outweigh the benefits, when assessed against the policies in this Framework taken as a whole, having particular regard to key policies for directing development to sustainable locations, making effective use of land, securing well-designed places and providing affordable homes, individually or in combination."

Making effective use of land

- 3.2.5 Chapter 11 of the NPPF seeks to promote the effective use of land and para. 123 states:

Planning policies and decisions should promote an effective use of land in meeting the need for homes and other uses, while safeguarding and improving the environment and ensuring safe and healthy living conditions. Strategic policies should set out a clear strategy for accommodating objectively assessed needs, in a way that makes as much use as possible of previously developed or 'brownfield' land.

- 3.2.6 This is carried forward in various policies in the LP. LP Policy GG2 seeks to enable development of brownfield land, among other areas, and prioritise sites which are well connected by public transport.

- 3.2.7 Significantly, the recently published NPPF (2024) has strengthened the policy presumption in favour of development of brownfield land, amending it at paragraph 125(c) as underlined below to state that planning decisions should:

"give substantial weight to the value of using suitable brownfield land within settlements for homes and other identified needs, proposals for which should be approved unless substantial harm would be caused"

Office use

- 3.2.8 LP Policy E2, Part C, notes that proposals that involve the loss of existing B Use Class business space should demonstrate that there is no reasonable prospect of the site being used for business or ensure that an equivalent amount of B Use Class business space is re-provided in the proposal which is appropriate in terms of type, use and size.

- 3.2.9 LLP Policy ED1, Part D, outlines that redevelopment of offices for mixed use developments would be supported if the quantity of the original office space is replaced or increased as part of the development. Outside of the CAZ, partial replacement of existing office floorspace in mixed use developments may be supported where it is demonstrated that the maximum feasible and viable quantity of replacement office floorspace has been provided and where there are other significant planning benefits are delivered.

- 3.2.10 The existing building contains 972sqm GIA of office floorspace (Use Class E(g)(i)). The most recent planning application (ref: 19/04768/FUL) was refused, partly because the Site lies

outside a designated town centre and the proposal sought to replace the building with one providing 1,905sqm of office space, an increase of 933sqm (95%) over the existing provision.

- 3.2.11 When the current application was first submitted, it proposed re-providing 655sqm GIA of office floorspace (68% re-provision) at basement and ground floor. There were concerns with the lack of provision of affordable housing and the ability for the applicant to make a financial contribution in lieu of on-site affordable housing.
- 3.2.12 At the request of officers, the applicant prepared a viability assessment (prepared by DS2) which was independently reviewed by the Council's consultant, Avison Young (AY). The review confirmed that the re-provision of office floorspace, would have a negative impact on viability. Following negotiations with the applicant, this was reduced to 259sqm GIA (27% re-provision) by removing the basement. This was necessary to optimise the delivery of housing and affordable housing, whilst ensuring the re-provision of office floorspace. This represents the maximum feasible and viable amount of office floorspace deliverable within the scheme and enables a contribution towards the delivery of off-site affordable housing.
- 3.2.13 The proposed 259sqm GIA of office floorspace would be provided as three separate units which would be served by a separate bin and bicycle store. The units would be of a different size, measuring 53sqm, 74sqm, and 83sqm Net Internal Area (NIA). The units could be rented individually or together to respond to the requirements of end users and market conditions.
- 3.2.14 Considering the above, officers are satisfied that the requirements of the policies are met and that the proposal with the reduced office floorspace would deliver a better development than the originally submitted scheme. The proposal complies with LP Policies E1 and E2, and LLP Policy ED1.

Affordable office space

- 3.2.15 LLP Policy ED1 (F) states that development proposals for new office floorspace greater than 2,000sqm (gross external area) should consider the scope to provide a proportion of flexible workspace suitable for micro, small and medium-sized enterprises, in accordance with LP Policy E2. This can include a variety of types of space including serviced offices and co-working space. Opportunities for long-term management of the flexible workspace by a company specialising in the management of this type of space should be fully explored.
- 3.2.16 The previous application (ref: 19/04768/FUL) was refused partly due to the lack of flexible workspace provision. In contrast, the current proposal reduces office floorspace from 921sqm to 255sqm GIA, meaning the policy requirement is not triggered.

Proposed new use – Housing

- 3.2.17 LP Policy H1 sets out the Mayor's approach to increasing housing supply, with a particular focus on accessible brownfield sites. A target of 13,350 new homes over a ten-year period (Table 4.1 of the LP) is proposed within Lambeth.
- 3.2.18 LLP Policy H1 seeks to maximise the supply of additional homes in the borough to meet and exceed Lambeth's housing requirement for the ten-year period. This would be achieved by:
- Optimising potential housing capacity on all suitable brownfield sites
 - Supporting proposals that provide an appropriate mix of sizes, types, and tenures in line with the development plan
 - Maximising residential density through a design-led approach (LP Policy D1(B))
 - Encouraging appropriate windfall site development

- 3.2.19 The development proposes 30x new homes, this represents a 2.24% contribution towards the borough's annual housing target of 1,335 homes. In this context, the contribution of the development to Lambeth's housing supply is significant and should be afforded appropriate weight. Details of housing type, tenure mix, and affordable housing provision are addressed in the 'Housing' section of this report, while design-led density considerations are covered in the 'Design' section. The proposal is considered compliant with LP Policy H1 and LLP Policy H1.

Impact on existing social infrastructure

- 3.2.20 LLP Policy S2(C) requires development proposals for more than 25 residential units to be supported by an assessment of anticipated impact on social infrastructure, including impact on the quality and sustainability of existing provision. Paragraph 7.19 supporting LLP Policy S2(D) states that the assessment should include schools, children's centres, primary health care facilities, libraries, community centres and any other forms of social infrastructure relevant to the site.
- 3.2.21 The submitted Infrastructure Sufficiency Statement (prepared by Greengage, ref: 552503OB06Aug23DV02_Infrastrucure_Statement.docx) assessed the impacts of the development on the existing social infrastructure. The statement concluded that overall, the proposed development would have negligible impact on local infrastructure capacity. The required CIL payment would support the Council's Infrastructure Delivery Plan and allow for improvements to be made. Therefore, the proposal would comply with LLP Policy S2.

Summary

- 3.2.22 The proposed mixed-use development consisting of residential and office floorspace is considered acceptable in principle, aligning with national, regional, and local planning policies that promote the efficient use of land, sustainable urban regeneration, and economic growth.

Housing

Affordable housing and tenure mix

- 3.2.23 The beginning of the agenda pack explains the policy context for affordable housing considerations. For this application, the threshold level of affordable housing is 35 per cent of gross residential development on habitable rooms, as per LP Policy H5.
- 3.2.24 LLP Policy H2 sets out the required tenure mix of affordable housing, based on units. This is explained further at the beginning of the Agenda pack.
- 3.2.25 The scheme proposes 30x new homes. Policy requires applications proposing more than 25 units (gross) to provide all affordable housing on site to be eligible for the Fast Track Route. However, where it is demonstrated to the satisfaction of the Council that this is not feasible, or that it would be more effective in meeting needs for affordable housing, off-site affordable accommodation provided by the developer may be acceptable. Furthermore, exceptionally, a payment in lieu may be accepted, however, such schemes must follow the Viability Tested Route.
- 3.2.26 The submitted Financial Viability Assessment (FVA) and addenda prepared by DS2 were independently reviewed by Avison Young (AY), the Council's appointed viability consultant. This matter was discussed extensively with the applicant during the determination of the application.
- 3.2.27 The proposal as originally submitted included a basement with additional office floorspace. The FVA showed that it was not viable to provide any on-site affordable housing or a Payment in

Lieu (PIL) towards off-site affordable housing. This was agreed by AY. Officers sought amendments to the scheme following this, to improve development viability and secure a contribution towards affordable housing from the development.

- 3.2.28 Subsequently, the proposals were revised to reduce the amount of office floorspace and remove the basement, where most of the proposed office floorspace was located. This change was progressed because the accommodation provided at basement level would be inferior to other similar units and the reduction showed to have a positive impact on the viability of the development. AY confirmed that a Payment in Lieu (PIL) of £390,000.00 could be viably secured following these changes, equivalent to 8% affordable housing on-site. Following careful consideration, officers agree that exceptional circumstances exist and a PIL can be accepted instead of providing on-site affordable housing, noting the inability to provide two separate cores (that are sought by Registered Providers (RPs)), and lack of interest from RPs for the quantum of affordable housing that could be provided.
- 3.2.29 Officers, therefore, recommend the PIL is secured through the S106 deed. This will enable the delivery of affordable housing in a range of tenures and unit sizes better aligned with the borough's priority housing needs, including through the Council's own development programme.

Review mechanism

- 3.2.30 LP Policy H5 states that applications following the Viability Tested Route will be subject to:
- an Early-Stage Viability Review, to be triggered if an agreed level of progress on implementation is not made within two years of the permission being granted (or a period agreed by the borough);
 - a Late-Stage Viability Review which is triggered when 75 per cent of the units in a scheme are sold or let (or a period agreed by the borough).
- 3.2.31 Any contribution arising from a review of viability would be capped by relevant policy requirements. Where a viability review demonstrates an improvement in a scheme's viability, a percentage split of the increase in the scheme's value between the developer and the Council. This will be: 40% of the increase in the scheme's value returned to the developer and 60% to the Council, up to the level that would be required for a policy compliant scheme; this is what has been agreed in this instance.

Housing mix

- 3.2.32 LP Policy H10 states that the scheme should generally consist of a range of unit sizes. To determine the appropriate mix of unit sizes in relation to the number of bedrooms for a scheme, applicants and decision makers should have regard to a range of matters including the housing need and demand, the mix of uses in the scheme, the nature and location of the site, the range of tenures in the scheme, to name the few.
- 3.2.33 LLP Policy H4 supports proposals which offer a range of dwelling sizes and types to meet current and future housing needs. All residential developments, including conversions, are expected to provide a mix of dwelling sizes. For market and intermediate housing, a balanced mix of unit sizes including family-sized accommodation should be provided.
- 3.2.34 The proposal would provide 30x self-contained homes. The table below provides the breakdown of the proposed housing mix:

Unit type	No. of Private Housing	No. Social Rent	No. of Affordable Housing (Discount Market Rent)	Total
Studio	-	-	-	-
1B/2P	11 (37%)	-	-	11 (37%)
2B/3P	11 (33%)	-	-	11 (33%)
2B/4P	4 (16%)	-	-	4 (16%)
3B/4P	3 (7%)	-	-	3 (7%)
3B/5P	1 (7%)	-	-	1 (7%)
TOTAL	30 (100%)	-	-	30 (100%)

- 3.2.35 The proposed mix of private dwellings is considered to offer a balanced mix of unit sizes and includes some family sized units.

Summary

- 3.2.36 Subject to securing planning obligations as listed above, the proposal meets the requirements of LP Policies H4, H5, H6 and LLP Policies H2 and H4.

Design

- 3.2.37 Design-based policies include many site-specific considerations, but in general, seek to ensure development responds to the positive aspects of its local context, has a bulk, scale/mass, siting, building line and orientation which adequately preserves or enhances the prevailing local character, and has a design quality which is visually interesting and well detailed.

Refused application ref: 19/04768/FUL

- 3.2.38 The last planning application (ref: 19/04768/FUL) at the Site was refused (see reason for refusal 4) because of the siting, building line, design, appearance, and materials. It was considered that the building would appear overly dominant in relation to the neighbouring building at 342 Clapham Road (also known as Singer Mews) and when viewed at the junction of Clapham Road and Union Road. The appearance of the proposed Clapham Road façade was poor and not well detailed. The CGI image below shows the scale, massing, and proposed appearance of the refused scheme.



Figure 6: CGI image of the refused scheme ref: 19/04768/FUL. View from the junction of Clapham Road and Union Road

Demolition of the existing building

- 3.2.39 There is no objection to the demolition of the existing mid-century office building. The building is not of high architectural quality, and it does not positively contribute to the appearance of the Site or the wider surrounding area.

Siting and layout

- 3.2.40 The proposed building would cover the whole Site at ground floor level.
- 3.2.41 The frontage on to Clapham Road would comprise the commercial floorspace serving as office, whilst the Union Road would comprise residential lobby, commercial bins and cycle store as well as a sub-station. The proposed ground floor uses especially the commercial use facing Clapham Road would provide an active frontage to the public realm, this is welcomed by officers. To ensure an active frontage with natural surveillance onto the street is retained, a planning condition is recommended preventing adding and/ or sticking anything to the glass such as films that might prevent views in and out from pedestrian level (see Condition 7).
- 3.2.42 The Conservation and Design team reviewed the proposal and raised no concerns with the proposed siting and layout of the building. As such, in design terms the proposed arrangement is considered acceptable, and the proposal would accord with LLP Policies Q6 and Q7.

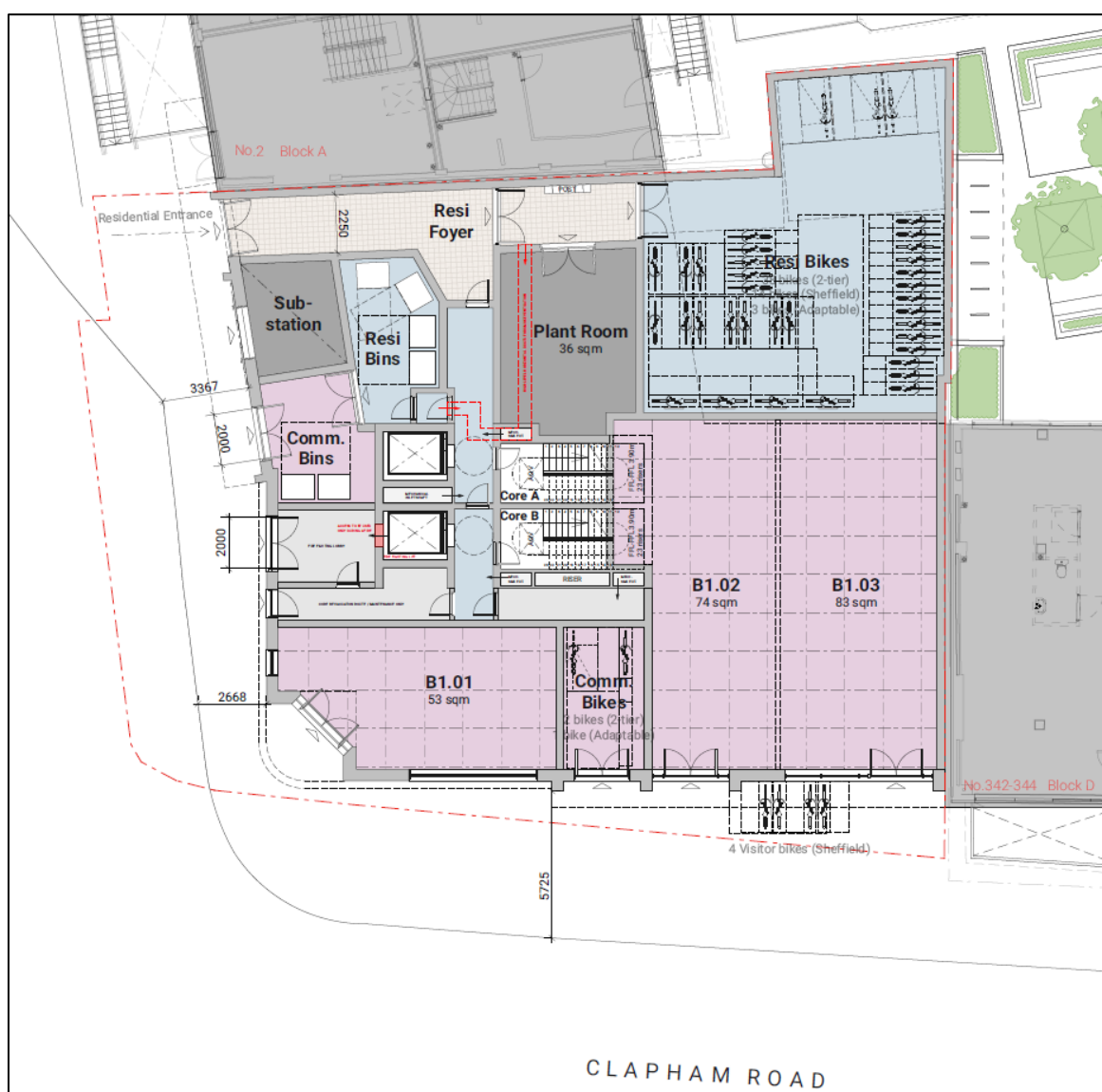


Figure 7: Proposed Ground Floor (drawing no. 0201, Rev E)

Scale and massing

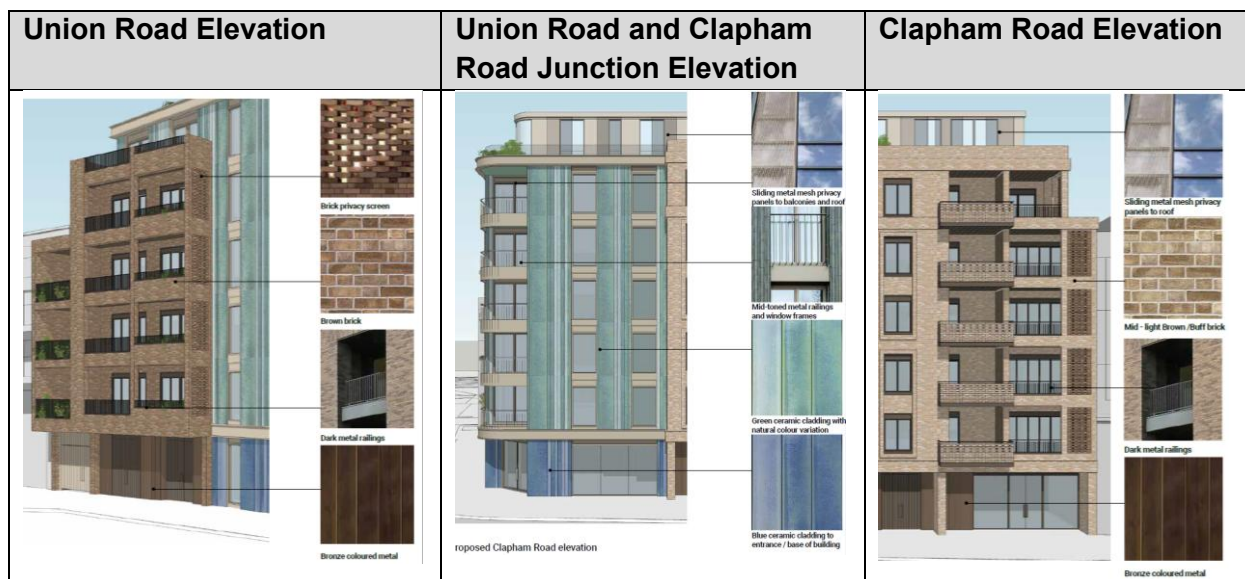
- 3.2.43 Objections were raised about the height of the building and the fact that it would be higher than the neighbouring Singer Mews development located to the north and west as well as the Phoenix Public House located to the south of the Site.
- 3.2.44 The Site is a corner site between Union Road and Clapham Road. Corner sites are typically locations suitable for distinctive buildings which are marginally taller than their neighbours. The proposed building would be 7-storeys (32.11m AOD in height). The building would be taller than its immediate neighbour (Singer Mews) which is 6-storeys (26.95m AOD in height). Whilst the proposed building would be taller, given its location on the corner plot the proposed height and the relationship that it would have with its neighbours is considered acceptable in design terms. The proposed illustrative elevation in Figure 8 demonstrates that the proposal would not negatively impact on the character and appearance of the surrounding area. In addition, it is noted that there are examples of other taller buildings in the surrounding area such as 340a Clapham Road development being 9-storeys (39.12m AOD in height), and 330-340 Clapham Road development being 6-storeys (approx. 27.7m AOD in height), both located north of the Site. As such, in design terms the proposed arrangement is considered acceptable, and the proposal would accord with LLP Policies Q5 and Q7.



Figure 8: Proposed illustrative elevation – view looking north (Source: Planning Statement)

Detailed design

- 3.2.45 The local context is characterised by brick-built buildings. The designs of the elevations would be split into three sections (Union Road, corner junction, and Clapham Road). Each section would have a distinctive look but there would be common themes used throughout to bring the building together. The table below shows the design of each section and lists the proposed material pallet which consists of brick, metal cladding, and cladding tiles.



- 3.2.46 The Conservation and Design advised that proposed material palette is locally distinctive. The use of brick as the principal material is considered a positive response to the local context. Whilst the façade design is a little bit complicated, it is well considered and with sufficient attention to detail it would be acceptable. Conditions would be added requesting further details to ensure that the quality of the building is high (see Conditions 21 and 22).

Summary

- 3.2.47 Officers are supportive of the proposal's approach to scale, siting and composition which has been carefully considered, in accordance with the relevant design-based policies. Overall, it is considered that the proposal has overcome the design-based reasons for refusing application ref: 19/04768/FUL.

Strategic and local views

Strategic views

- 3.2.48 LP Policy HC3 states that Strategic Views include significant buildings, urban landscapes or riverscapes that help to define London at a strategic level. LP Policy HC4 states that development proposals should not harm, and should seek to make a positive contribution to, the characteristics and composition of Strategic Views and their landmark elements and preserve the ability of the viewer to recognise their features. LLP Policy Q25 Part A states *"The council will resist harm to the significance of strategic views (Panoramas, Linear Views, River Prospects and Townscape Views defined in the Mayor's London View Management Framework SPG (2012) and listed in Annex 6) and secure improvements within them in accordance with LP Policy HC4."*
- 3.2.49 The proposed development does not affect any Strategic Views because there are no strategic views that could possibly be affected due to where the Site is.

Local views

- 3.2.50 LLP Policy Q25 sets out the views of local interest, which the Council seeks to protect from harm. The viewing location and visual management guidance for this view are set out in the Draft Lambeth Views SPD (2024) which has informed the analysis below.
- 3.2.51 The Site is within the designated local views north-west of Brixton Landmarks (Lambeth's Town Hall's tower and St Matthew's church towers) and views north and north-east to the City (Policy

Q25 (b)). The proposed building would be a maximum of 32m in height (AOD). The Design and Conservation officer have reviewed the submitted plans and documents and advised that the building would not be tall enough to have any impact on the local views.

Summary

- 3.2.52 The proposed development would not harm strategic or local views. The proposal would comply with LP Policies HC3, HC4 as well as LLP Policy Q25.

Heritage impact

Approach to heritage considerations

- 3.2.53 The beginning of the Agenda Pack sets out the legislative background and the national and borough level policy context. Reference should be made to those materials.
- 3.2.54 The first step is to identify the nature and extent of any harm to the significance of any designated heritage assets. This will be a matter for the planning judgement of the decision-maker, looking at the facts of the application and taking into account the importance of the asset in question. Minimal harm to the value of a designated heritage asset should still be placed within the category of less than substantial harm. When assessing any application which may affect the setting of a heritage asset, the impact of cumulative change may need to be considered.
- 3.2.55 Clear and convincing justification is required by NPPF paragraph 213 for any harm to the significance of a designated heritage asset. The second step is therefore to balance that harm against the public benefits of the scheme, applying the requirements of NPPF paragraph 215 in the case of less than substantial harm, or NPPF paragraph 214 in the case of substantial harm (or total loss of significance).
- 3.2.56 A public benefit can be anything that delivers economic, social or environmental objectives, which are the three overarching objectives of the planning system as set out in the NPPF. The Planning Practice Guidance advises that “*public benefits should flow from the proposed development. They should be of a nature or scale to be of benefit to the public at large and not just be a private benefit. However, benefits do not always have to be visible or accessible to the public in order to be genuine public benefits, for example, works to a listed private dwelling which secure its future as a designated heritage asset could be a public benefit*”. The degree of weight to attach to any particular public benefit is a matter for the decision-maker.
- 3.2.57 Public benefits can include heritage benefits. If heritage harm and heritage benefit arise in relation to the same asset, the decision-maker should consider whether the benefit would prevent the harm from arising and, if it would, avoid double-counting the heritage benefit when identifying the public benefits. If there is harm to one asset but a heritage benefit to a different asset, the heritage benefit accruing to one should not be treated as meaning that there is no heritage harm to the other.
- 3.2.58 Importantly, the balancing exercises required by NPPF paragraph 214 and 215 are not simple unweighted exercises in which the decision-maker is free to give heritage harm whatever degree of weight they wish. In *Barnwell Manor* the Court of Appeal identified that the decision-maker needed to give “*considerable importance and weight*” to any finding of likely harm to a listed building or its setting in order properly to perform the section 66 duty. Sections 66 and 72 of the Planning (Listed Buildings and Conservation Areas) Act 1990 amount to a statutory presumption against development that would harm the significance of a listed building or a

conservation area. The presumption can be outweighed, but only if there are material considerations (which will include a proposal's public benefits) that are strong enough to do so.

- 3.2.59 The decision-maker needs to ensure that they give considerable importance and weight to harm to the significance of a designated heritage asset, and ensure that the more important the asset, the more the weight that is given to the harm in the balancing exercise. Where the significance of more than one designated heritage asset would be harmed by the proposed development, the decision-maker needs to account for each individual harm and identify, overall, the resulting degree of less than substantial harm or substantial harm.
- 3.2.60 The assessment of the nature and extent of harm to the significance of a non-designated heritage asset is a matter for the planning judgement of the decision-maker, looking at the facts of the application and considering the importance of the asset in question. NPPF paragraph 216 does not prescribe how the balanced judgement required should be undertaken, or what weight should be given to any particular matter.

Conservation areas

- 3.2.61 There are two conservation areas close to the Site; the Clapham Road Conservation Area approximately 30 metres to the south-east, and the Sibella Road Conservation Area approximately 40 metres to the south-west of the Site.
- 3.2.62 The Design and Conservation officer has reviewed the submitted plans and documents and advised that the proposal would not have an adverse impact on the nearby conservation areas. The proposed development would be replacing a building that does not positively contribute to the character and appearance of the wider area. The replacement building would be of higher architectural quality. Furthermore, it is noted that the Site is in an area where some similar scale development has been permitted and built (Singer Mews ref: 06/03159/FUL and 340a Clapham Road 16/06668/FUL). As such, the proposal would comply with the NPPF, LP Policy HC1, and LLP Policy Q22.

Listed buildings

- 3.2.63 There are no statutory listed buildings on and around the Site that would be affected by the proposals.

Non-designed heritage assets

Locally listed buildings

- 3.2.64 The Phoenix Public House located at 348 Clapham Road (to the south of the Site) is a non-designated heritage asset on the Local Heritage List. The description read: *Corner pub in two parts. LHS a regency house and rhs a grander, purpose-built mid-19th Century pub which is ornamented by intricate stucco detailing to both Clapham Road and the Union Road flank. The pub itself occupies a single storey addition and has the streamlined characteristics of an inter-war- or post-war rebuild. Sash windows to upper floors.*
- 3.2.65 The public house was added to the Local Heritage List on 18.07.2016 for its architecture, history, and townscape impact. The Design and Conservation officer have reviewed the submitted plans and documents and advised that the proposal would not have an adverse impact on the nearby locally listed building. As such, the proposed development would comply with the NPPF, LP Policy HC1, and LLP Policy Q23.

Archaeological Priority Area

- 3.2.66 The Site is located within an Archaeological Priority Area that in this case represents a corridor along the line of a former Roman road. The submitted archaeological desk-based assessment

report (prepared by L-P Archaeology/MoLA, dated August 2019 and revised September 2023) recommended a watching brief due to Clapham Road being on the line of a former Roman road.

- 3.2.67 However, Historic England, Greater London Archaeology Advisory Service (GLASS), reviewed the submitted document and advised that when combining the round disturbance associated with the construction of the current building with that earlier dwelling that fronted Union Road, the overall impact, when mapped against the footprint of the proposed development, the area of potential archaeological interest will be negligible. Furthermore, an excavation of the adjacent site in 2003 produced no Roman period archaeology. Therefore, no further assessment or conditions are necessary, the proposal would comply with the NPPF, LP Policy HC1 - Part D, and LLP Policy Q23 - Part D.

Summary

- 3.2.68 In officers' assessment no harm to the significance of any heritage assets has been identified, meaning that the proposal complies with the heritage policies of the development plan.

Sustainable design and construction

- 3.2.69 Strategic and local policies require development to demonstrate how it would minimise its impact on the environment, including through its construction and end-use.

Refused application ref: 19/04768/FUL

- 3.2.70 The last planning application (ref: 19/04768/FUL) at this Site was refused (see reason for refusal 8) because the scheme failed to demonstrate that sustainable design standards are integral to the design, construction and operation of the development.

Energy strategy

- 3.2.71 LP Policy SI 2 states that major developments should be net-zero carbon. This means reducing greenhouse gas emissions in accordance with the following energy hierarchy:

- **Be Lean:** use less energy and manage demand during operation
- **Be Clean:** exploit local energy resources (such as secondary heat) and supply energy efficiently and cleanly.
- **Be Green:** maximise opportunities for renewable energy by producing, storing and using renewable energy on-site.
- **Be Seen:** monitor, verify and report on energy performance.

- 3.2.72 The application is supported by the Energy Statement (prepared by Sustain Quality Ltd, number 001121, version 6.0, dated 17/12/2025) which indicates that the proposed development will achieve a 79% residential reduction and a 88% non-residential reduction for on-site improvement over baseline emissions for regulated CO2 emissions. The total emissions reductions against baseline emissions is 79%. The statement was reviewed by the Council's independent consultant Blewburton who advised officers on whether the submitted document has been correctly prepared.

Be Lean

- 3.2.73 The Be Lean Stage includes energy efficiency measures including energy efficient building fabric, air tightness, mechanical ventilation with heat recovery, and energy efficient lighting with sensor controls in communal areas. For non-residential use these upgrades are predicted to provide a 6% CO2 reduction site-wide compared to the Part L 2021 Baseline. For residential use these upgrades are predicted to provide a 13% CO2 reduction site-wide compared to the Part L 2021 Baseline. The non-residential element meets the policy target, whilst the residential

element falls 1% short of the policy target. This is considered acceptable, however, noting the slight shortfall and given the overall carbon savings comfortably surpass the policy target.

Be Clean

- 3.2.74 The Be Clean Stage does not include any savings. There are no existing or planned heating or cooling networks near the Site. CHP and communal systems have been found unsuitable. Allowance has been made for the installation of a heat exchanger to connect to a future heat network, should one become available. This would be secured through the S106 deed.

Be Green

- 3.2.75 The Be Green Stage includes air and water source heat pumps. The anticipated reduction for residential use is 69% and a non-residential reduction is 35%.

Be Seen

- 3.2.76 The Be Seen Stage requires the development to monitor and report to the GLA on the energy performance of the development as-built and in the in-use phase for every year following occupation of the development for at least the first five years. This would be secured through a condition.

Zero Carbon saving

- 3.2.77 The policy requires a minimum 35% on-site reduction in emissions for major developments against Part L of the Building Regulations. The proposal would see a total reduction of 79% as reported in the submitted energy strategy. In order to achieve the 'zero carbon' requirement, the remaining regulated carbon dioxide are proposed to be off-set through a cash in lieu contribution to be ring fenced to secure delivery of carbon dioxide savings elsewhere. This would be secured within a S106 deed. This results in an estimated payment of £14,905. As-built calculations will be required to confirm the final payment amount required. This would be secured within a S106 deed and by Condition 32.
- 3.2.78 In respect of unregulated emissions, these would be minimised through energy efficiency measures, such as energy efficient appliances and lighting.

Whole Life-Cycle Carbon Assessment

- 3.2.79 LP Policy SI 2 Part F requires development proposals that are referable to the Mayor to calculate whole-life cycle carbon emissions through a nationally recognised Whole Life-Cycle Carbon Assessment (WLCA) and demonstrate actions taken to reduce life-cycle carbon emissions. Whilst the application is not referable to the Mayor, a WLCA has been provided.
- 3.2.80 The submitted WLCA demonstrates that the proposed building is expected to generate lower emissions than the existing building, and emissions are expected to be below benchmarks. The Council's Sustainability consultant recommended a planning condition which has been added (see Condition 36).

Waste and the circular economy

Circular economy

- 3.2.81 LP Policy SI 7 requires all developments referable to the Mayor of London to provide a Circular Economy Statement (CES). LP Policy D3 requires development proposals to integrate circular economy principles as part of the design process. LLP Policy EN7 supports the circular economy principles and the approach to driving waste management up the waste hierarchy in accordance with national and regional policy and targets, and in particular, the efficient use of

resources, the reuse of materials and resources, composting, and the recovery of energy from materials.

- 3.2.82 The application does not require referral to the Mayor, and therefore, a CES is not required by policy. Nevertheless, the applicant prepared CES. This is included in the submitted Sustainability Statement. The circular economy principles required by policy would be adopted. It is recommended that a condition (Condition 37) is added requesting a post-completion report setting out the predicted and actual performance against all numerical targets in the approved circular economy statement. Subject to this the proposal would comply with the relevant policies.

Demolition and construction waste

- 3.2.83 LP Policy SI 7 and LLP Policy EN7 require that at least 95 per cent of construction and demolition waste should be reused, recycled or recovered and at least 95 per cent of excavation waste should be put to beneficial use. Disposal of construction, demolition and excavation (CD&E) waste in landfill should only take place where it has been demonstrated that alternative, more sustainable fates are not feasible. Conditions 33 and 34 is recommended to secure details of how the proposal will comply with this requirement.

Operational phase

- 3.2.84 For waste generated by the ongoing use of the development, LP Policy SI 7 sets a recycling target of 65 per cent. The submitted sustainability statement includes a section on operational waste strategy outlining the number of bins that would be provided for each use. The Council's waste team (SERCO) reviewed the proposal and raised no concerns. Whilst this is the case, it is recommended that a condition is added that confirms that they applicant would meet the targets mentioned in the planning policy (see Condition 42).

Overheating mitigation

- 3.2.85 LP Policy SI 4 states that major development proposals should demonstrate how they will reduce the potential for internal overheating and reliance on air conditioning systems in accordance with a hierarchy that prioritises passive measures overactive measures. LLP Policy EN4 requires development to be resilient to climate change by including appropriate climate change adaptation measures.
- 3.2.86 A residential and non-residential overheating assessment has been carried out. This shows an acceptable overheating strategy. The Council's Sustainability consultant recommended a planning condition which has been added to ensure this strategy is delivered (see Condition 35).

Building Research Establishment Environmental Assessment Methodology (BREEAM)

- 3.2.87 LLP Policy EN4 requires all non-residential development to meet at least BREEAM 'Excellent'. The application is supported by a BREEAM Statement and Modular Building document.
- 3.2.88 The application is supported by the Sustainability Statement (prepared by Sustain Quality) commits to achieving an Excellent BREEAM Rating for the proposed development, noting that it could achieve a BREEAM score of approximately 75.62% (whereby the BREEAM 'Excellent' target score is 70%). The assessment is carried out for the proposed development to shell and core. A condition (Condition 38) is therefore included requiring a minimum final certificated rating of Excellent to be achieved. Subject to this the proposed development would comply with the relevant policies.

Water efficiency

- 3.2.89 LP Policy SI 5 states that by using planning conditions, developments should minimise the use of mains water. LLP Policy EN6 seeks to minimise water consumption and incorporate water re-use systems where practical.
- 3.2.90 The application is supported by the Sustainability Statement included information about water use. Blewburton reviewed by the submission on behalf of the Council, confirming that:
- **Water efficiency measures:** BREEAM credits are targeted for water monitoring (Wat02), water leak detection and flow control devices (Wat03) and water efficient equipment (Wat04) is target for the whole development.
 - **Non-residential (target 12.5%):** BREEAM Wat01 credits are targeted for a 40%.
 - **Residential internal water use:** Details of proposed flow rates and capacities to achieve a water use of 105l/person/day or less have been provided.
- 3.2.91 These measures will be secured by condition (Conditions 25, 26 and 30), ensuring compliance with the relevant policies.

Summary

- 3.2.92 The proposed development incorporates a wide range of sustainable design measures, aligned with the energy hierarchy, climate resilience principles, and environmental objectives of national, regional, and local policy. The reductions in regulated carbon emissions would be achieved with passive design, air source heat pumps, and roof mounted PV panels, and it would be futureproofed for connection to a district heat network. Subject to appropriate conditions and planning obligations, the scheme is considered to make a significant and positive contribution to the borough's climate action and net zero objectives.

Amenity impact

- 3.2.93 LLP Policy Q2 requires development to protect the amenity of existing/future occupants, neighbours and the visual amenity of the community of a whole.

Daylight, sunlight, and overshadowing

- 3.2.94 The Planning Practice Guidance (PPG) includes guidance on making effective use of land, including planning for higher density development. The PPG states: "*Where a planning application is submitted, local planning authorities will need to consider whether the proposed development would have an unreasonable impact on the daylight and sunlight levels enjoyed by neighbouring occupiers*".
- 3.2.95 The PPG also acknowledges that wider planning considerations are relevant in considering appropriate levels of daylight and sunlight. The guidance notes that all developments should maintain acceptable living standards. However, the guidance also notes that assessing what are appropriate levels of sunlight and daylight will depend to some extent on the context of the development as well as its detailed design. Lower daylight and sunlight levels at some windows may be unavoidable if new developments are to be in keeping with the general form of their surroundings. In such situations good design will be necessary to help make the best use of the site and maintain acceptable living standards.
- 3.2.96 In this respect, paragraph 130(c) of the NPPF states: "*local planning authorities should refuse applications which they consider fail to make efficient use of land, taking into account the policies in this Framework. In this context, when considering applications for housing, authorities*

should take a flexible approach in applying policies or guidance relating to daylight and sunlight, where they would otherwise inhibit making efficient use of a site (as long as the resulting scheme would provide acceptable living standards)."

- 3.2.97 LLP Policy Q2 states that development will be supported if: (iv) it would not have an unacceptable impact on levels of daylight and sunlight on the host building or adjoining property including their gardens or outdoor spaces. Paragraph 10.2 of the LLP states "*Sustainable development should protect the amenity of existing/future occupants, neighbours and the visual amenity of the community as a whole.*"
- 3.2.98 The beginning of the Agenda Pack a contains broad contextual overview of the assessment framework within which sunlight and daylight studies are undertaken and the application of the Building Research Establishment ('BRE') Guidelines. This includes an explanation of the key terms and targets contained within the BRE Guidelines. The following assessment has been made in the context of this information.
- 3.2.99 The submitted Daylight and Sunlight Report (prepared by Right of Light Consulting, dated 15.12.2023), provides an assessment of the daylight and sunlight impacts on neighbouring properties and overshadowing impacts on neighbouring open space areas. The Report has been reviewed by Arup, a daylight / sunlight consultant appointed by the Council, whose comments are incorporated into this section of the PAC report
- 3.2.100 The assessment includes both residential and commercial properties nearby the ite, including the following:
- 342 to 344 Clapham Road
 - 4-7 Singer Mews
 - 1 Union Road
 - 2 Union Road
 - 3 Union Road
 - 5 Union Road
 - 7 Union Road
 - Phoenix Public House (348 Clapham Road)
 - 1-35 Rusper Court
- 3.2.101 Several objections were received raised concerns with the loss of daylight and sunlight.

Daylight impacts

Singer Mews development

342-344 Clapham Road

- 3.2.102 This neighbouring site is located north of the Site. The building is 7-storeys in height (including basement). 45 windows were tested, and they all comply with BRE Guidelines for the VSC and DD.

4-7 Singer Mews

- 3.2.103 This neighbouring site is located north-east of the Site. The building is 6-storeys in height (including basement).
- 3.2.104 With regard to VSC, 69 out of 77 windows comply with BRE Guidelines. The 8 windows that fail serve living/dining/kitchen rooms. Those windows are located underneath balcony overhangs. The BRE guide acknowledges that where a window has an overhang or projecting wings on one

or both sides of it, a larger relative reduction in VSC may be unavoidable. As such in this instance, the lack of compliance with BRE is acceptable.

3.2.105 With regard to DD, 71 out of 77 windows comply with BRE Guideline. 6 windows that would be affected are:

- 4 are living/dining/kitchen rooms that have a depth of 5m or more. The BRE guide explains that in such scenarios a greater movement of the no skyline is unavoidable
- 2 are bedrooms BRE guide explains that daylight in bedrooms is less important than in other habitable rooms such as kitchens and living rooms

2 Union Road

3.2.106 This neighbouring site is located east of the Site. The building is 5-storeys in height (including basement).

3.2.107 56 out of 57 windows were tested comply with BRE Guideline for VSC. 1 window that fails serves a bedroom and it located underneath a balcony overhang. As mentioned before under paragraph 4.2.104, the BRE guide acknowledges that where a window has an overhang or projecting wings on one or both sides of it, a larger relative reduction in VSC may be unavoidable. As such in this instance, the lack of compliance with BRE is acceptable.

3.2.108 57 windows were tested, and they all comply with BRE Guidelines for DD.

Neighbouring properties on Union Road

Phoenix Public House (348 Clapham Road)

3.2.109 This neighbouring site is located east of the Site on the opposite side of Union Road. The building is 3-storeys in height. 45 windows were tested, and they all comply with BRE Guidelines for VSC and DD.

1 Union Road

3.2.110 This neighbouring site is located east of the Site on the opposite side of Union Road. The building on site is 3-storeys in height. 7 windows were tested, and they all comply with BRE Guideline for VSC and DD.

3 Union Road

3.2.111 This neighbouring site is located east of the Site on the opposite side of Union Road. The building is 4-storeys in height. 11 windows were tested, and they all comply with BRE Guidelines for VSC and DD.

5 Union Road

3.2.112 This neighbouring site is located east of the Site on the opposite side of Union Road. The building is 4-storeys in height. 19 windows were tested, and they all comply with BRE Guideline for the VSC and DD.

7 Union Road

3.2.113 This neighbouring site is located east of the Site on the opposite side of Union Road. The building is 4-storeys in height. 4 windows were tested, and they all comply with BRE Guidelines for VSC and DD.

Neighbouring properties on the opposite side of Clapham Road

1-35 Rusper Court

- 3.2.114 This neighbouring site is located west of the Site on the opposite side of Clapham Road. The building is 5-storeys in height (including basement). 28 windows were tested, and they all comply with BRE Guidelines for VSC and DD.

Sunlight impacts

- 3.2.115 Except for 2 windows at 4 to 7 Singer Mews and 1 window at 2 Union Road, all main living room windows satisfy the BRE Guidelines sunlight criteria, both annually and during the winter months. It is noted that the BRE guide states that the alternative target setting methodologies can also be applied when assessing annual probable sunlight hours. The windows at 4 to 7 Singer Mews and 2 Union Road surpass their alternative Annual Probable Sunlight Hours targets. The proposed development therefore has an acceptable impact on sunlight received at neighbouring properties.

Overshadowing

- 3.2.116 The assessment shows that the existing sunlight availability is already low for development at 4, 5 and 2 Union Road. The proposed development would reduce it to less than 0.8 times its former value. Since the level of overshadowing is relatively small in absolute area terms, the development would not have a harmful effect on these amenity areas.
- 3.2.117 The sunlight availability to gardens 1 at 342 to 344 Clapham Road would also be reduced to less than 0.8 times its former value after the development. It is noted that this property benefits from a communal amenity space at fifth floor level which exceeds the BRE overshadowing recommendation. As all occupants at 342 to 344 will continue to have access to a well sunlit space, the overshadowing impact at this property can be considered acceptable.

Summary on daylight and sunlight impacts

- 3.2.118 On balance, while there are some reported failures against BRE Guidelines target criteria, this must be weighed against the broader urban-design principles and regeneration benefits of the proposal. The proposal responds to the Site's context and capacity for growth, as well as the notable public benefits arising from the development, which are considered further in the planning balance and conclusion of the report. In light of this, officers consider the impacts of the development on the receipt of daylight and sunlight to surrounding properties acceptable and in accordance with LLP Policy Q2.

Outlook and privacy

- 3.2.119 LLP Policy Q2 states that development proposals will be supported if: *“(iii) adequate outlooks are provided avoiding wherever possible any undue sense of enclosure or unacceptable levels of overlooking (or perceived overlooking)”*.
- 3.2.120 An objection was received raising concerns with the overlooking and loss of privacy to properties to the south of the Site. It is noted that the planning system cannot protect specific views from private properties, but it can consider whether a proposed development is intrusive or overbearing to the outlook of a property, due to the massing and proximity of a proposal, and whether this would cause demonstrable harm to the amenity of that property
- 3.2.121 The distance between the proposed development and properties within the Singer Mews development would be vary between 12m to 23m. With regard to the shorter distance, there would be some limited views available between properties at certain angles, which would be a similar arrangement to properties within Singer Mews itself. After careful consideration and assessment of the scheme it is considered that the separation distances would be sufficient to ensure there would not be any significant loss of outlook or loss of privacy through overlooking.

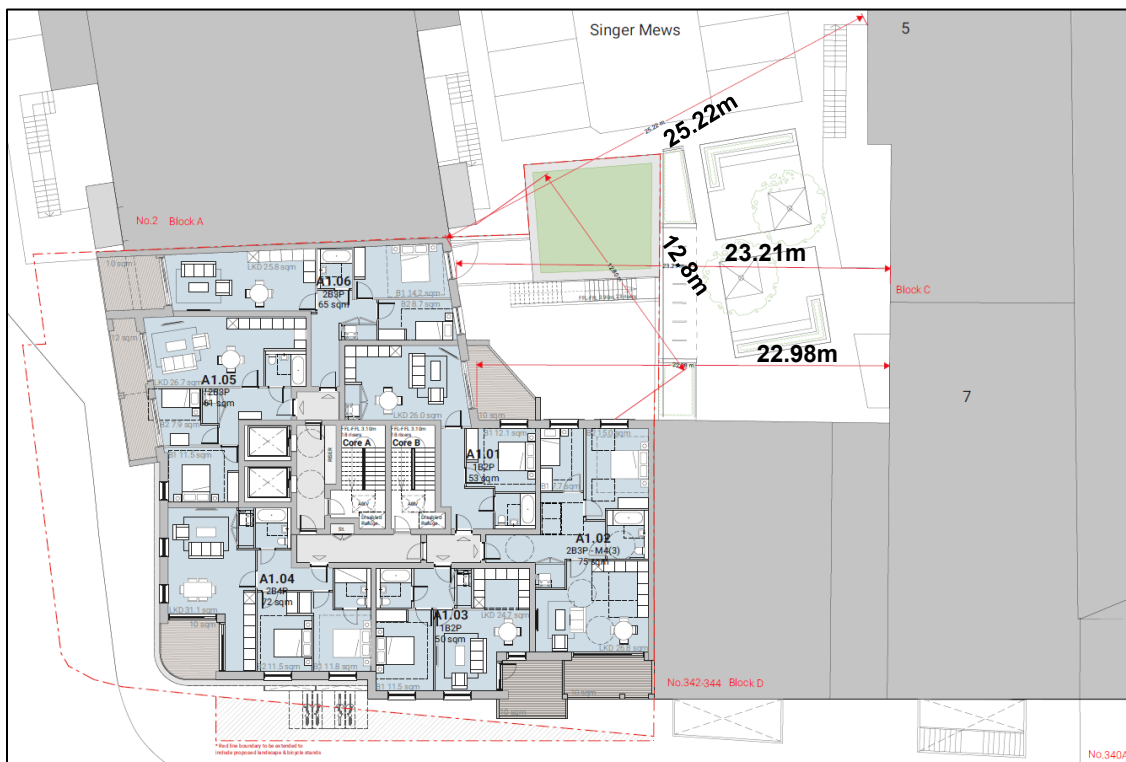


Figure 9: Separation distances between the proposed development and properties within the Singer Mews development (See Drawing 0202 Rev E for updated floorplan)

Noise

- 3.2.122 LP Policy D14 states that development proposals should avoid significant adverse noise impacts on health and quality of life as a result of new development. Policy Q2 of the LLP requires development to reduce the adverse impact of noise on neighbouring amenity to an acceptable level”.
- 3.2.123 An objection was received raising concerns with noise and disturbance from the proposed use. The proposal has been reviewed by the RSS, Council’s Environmental Health consultants who reviewed the potential operational and construction impacts associated with noise. They recommend that if the application is approved, the following conditions should be included in the decision notice to prevent any unacceptable impact to residents and neighbours. The recommended conditions are as follows:
- Submission of a Construction and Environment Management Plan
 - Submission of assessment detailing noise from building services plant and equipment
 - Submission of noise and vibration attenuation and ventilation to prevent overheating and maintenance
 - Restricted hours of use for office
 - Submission of a Delivery and Servicing Plan

- 3.2.124 The proposed development would be acceptable in respect of noise impacts subject to these conditions being included (see Conditions 4, 12, 15 and 19).

Light pollution

- 3.2.125 The Institution of Lighting Professionals (ILP) publication ‘Guidance Notes for the Reduction of Obtrusive Light (GN01:2011)’ makes recommendations aimed at avoiding nuisance from obtrusive external lighting installations.

- 3.2.126 The submission does not detail the proposed lighting strategy. To ensure that any potential light spillage would be minimised as to avoid significant environmental effects, it is recommended that a condition is attached to the planning permission (see Condition 29).

Summary

- 3.2.127 The applicant has taken care to design a scheme to adequately separates the building away from neighbouring properties to minimise amenity impacts, though in some instances there are appreciable reductions in daylight, however these impacts are not unacceptable in the circumstances, and the proposal complies with NPPF, LP Policies D6, D13 and D14, and LLP Policy Q2.

Transport

- 3.2.128 Development plan policies seek to ensure that the impacts of development on the transport network are fully assessed and promote sustainable modes of travel. Paragraph 115 of the NPPF states that “*development should only be prevented or refused on highways grounds if there would be an unacceptable impact on highway safety, or the residual cumulative impacts on the road network would be severe.*”

Transport context

- 3.2.129 The Site fronts Clapham Road (A3) which forms part of the Transport for London Road Network (TLRN) and for which Transport for London (TfL) is responsible. The Site also fronts Union Road, which is managed by the Council.
- 3.2.130 The Site is located within Controlled Paring Zone (CPZ), Code S, operating Monday to Friday between 8:30am and 17:30pm.
- 3.2.131 The Site has PTAL of 6a (on a scale of 0 to 6b, where 6b represents the greatest level of access to public transport services). The nearest bus stop is on the Clapham Road/Union Road junction 50m from the Site. The nearest underground station (Clapham North and Stockwell) is located 0.48km away from the Site to the south and north respectively. The Site benefits from the existing pedestrian and cycling facilities which cover the surrounding area.

Access

- 3.2.132 Pedestrian access to the three of the commercial units located on the ground floor level would be provided directly from the existing footway / forecourt area outside of the building; two accessed from Clapham Road and one accessed at the corner of the Clapham Road / Union Road junction.
- 3.2.133 Pedestrian access to the residential lobby, which provides access to the residential units, is provided via a gated entrance lane from Union Road at the rear of the building.
- 3.2.134 There would be no vehicular access to the Site. The existing access off the Union Road would be removed and full height kerb re-instated. This would be secured through a S278 highways agreement, through the S106 deed.

Healthy Routes

- 3.2.135 LP Policy T2 sets out a requirement to promote the Mayor’s Healthy Streets Approach which is a system of policies and strategies to deliver a healthier, more inclusive city where people choose to walk, cycle, and use public transport.

- 3.2.136 The last planning application at the Site (ref: 19/04768/FUL) was refused (see reason for refusal 9) because of the potential impacts the development could have on parking pressure due to the absence of healthy routes improvement, travel plan, cycle hire membership, car club membership and car permit restrictions.
- 3.2.137 Clapham Road is on a Healthy Routes Network. The Healthy Routes Programme Manager was consulted on this application and advised that the proposed development should pay a financial contribution of £25,000 for design development work on Slade Green Healthy Neighbourhood. The applicant has agreed to this, the contribution would be secured through a S106 deed. The proposal would comply with LP Policy T2.

Trip generation

- 3.2.138 The proposed development is expected to generate 42x two-way trips by active travel modes per day, 215x two-way trips by public transport modes per day and 13x servicing trips per day. This is additional 15x two-way vehicle trips per day in the AM peak, 11x in the PM peak and 117x two-way people trips across the whole day when compared to the existing use. Most of the new trips would be on foot reflecting the central and highly accessible location of the Site and are not expected to have a detrimental impact on the local transport network. Overall, the trip generation associated with the proposal is not considered to have significant implications on local highway and footway. The public transport network would be able to absorb any net increase given the minor increase in trips from the development.

Car parking and car club

Car parking

- 3.2.139 LP Policy T6 is concerned with car parking and requires that car parking is restricted in line with existing and future public transport accessibility and connectivity. Car-free development should be the starting point for all development proposals in places that are (or are planned to be) well-connected by public transport. Car-free development should provide appropriate disabled persons car parking. Where parking is provided, a Parking Design and Management Plan should be submitted alongside all applications which include car parking provision LLP Policy T6 states that development should avoid reliance on the public highway to meet the parking requirements of development.
- 3.2.140 The proposed development would be car free with no parking on-site. Should permission be granted, it is recommended that the development be secured as car free through a S106 deed to ensure compliance with Policy T6 of the LP and LLP. This will actively promote the use of walking, cycling or public transport as the preferred travel option.

Blue Badge provision

- 3.2.141 With regard to Blue Badge provision, Policy T6.1 of the LP requires that 3% of residential units should have access to Blue Badge parking from the outset, with an additional 7% to be deliverable through a Parking Design and Management Plan, to be provided if demand exceeds 3%. Based on this, the proposed development is required to provide 1x Blue Badge space from the outset and additional 2x spaces being provided if required. Furthermore, 1x Blue Badge space is required for the commercial use.
- 3.2.142 During the determination of the application Transport Planning agreed to off-site provision of 2x Blue Badge parking spaces approximately 90m from the development on Union Road. This was considered acceptable because of the site constraints, design, and viability of the development. The chosen location is where Union Road widens and allows for opportunities for safe parking. The route to those spaces is flat via a footway of approximately 3m wide which crosses only two access points with appropriate dropped kerb provision in place. This would be secured via a

financial contribution of £40,000.00 through the S106 deed, including provision for Electric Vehicle (EV) charging. The management plan would also be secured through the S106 deed.

Car Club membership

3.2.143 Policy T6 of the LLP states that car club membership for all residents should be provided for a minimum of three years to further reduce on-street parking demand.

3.2.144 In line with the above, car club membership would be secured for a minimum of three years, through the S106 deed.

Cycle parking

3.2.145 LP Policy T5 states that development proposals should help remove barriers to cycling and create a healthy environment in which people choose to cycle. This will be achieved through the provision of appropriate levels of cycle parking, which should be fit for purpose, secure and well-located. Developments should provide cycle parking at least in accordance with the minimum standards set out in Table 10.2 and Figure 10.2 and should be designed and laid out in accordance with the London Cycling Design Standards (LCDS). LLP Policy T3 supports the aims and objectives of the LP.

3.2.146 The proposed development would provide separate residential and commercial bike stores on the ground floor of the development. The residential cycle store would be accessed from Union Road, and the commercial cycle store would be accessed from Clapham Road. The cycle parking provision would consist of:

Cycle parking minimum policy requirements vs provision: Summary table					
Land use	Number of homes / floorspace	Long stay spaces		Short stay spaces	
		Requirement	Provision	Requirement	Provision
Residential	30x homes: • 11x – 2P/1 and • 19x all other	55 • (1 space per studio or 1P/1B • 1.5 spaces 2P/1B • 2 spaces per all other dwellings)	55	1 (1 space per 40 bedrooms)	3
Office	259sqm	4 (1 per 75sqm)	7	1 (first 5,000sqm: 1 space per 500 sqm)	1
Total	-	59	62	2	4

3.2.147 The proposed development would provide the minimum LP and LLP policy level for long-stay and short-stay cycle parking spaces, ensuring that 5% of spaces are for adapted / larger cycles and approximately 25% spaces are Sheffield stands. The proposed layout and stand types have been sufficiently demonstrated on the submitted drawings. The proposal is considered to comply with the LCDS. Nevertheless, should planning permission be granted it is recommended

that a planning condition is added ensuring that all cycle parking is provided prior to occupation (see Condition 45).

Cycle hire

- 3.2.148 In line with LLP Policy T3, Part H, states that a minimum of three years free membership of the Cycle Hire schemes for all residents regardless of tenure, should be made available in new residential developments. Uptake of cycle hire business accounts should be encouraged for occupiers of commercial developments through the travel plan process.
- 3.2.149 In line with the above, cycle hire membership would be secured through the S106 deed.

Travel plan

- 3.2.150 LP Policy T1 requires a submission of Travel Plan which is an established tool to manage travel behaviour and deliver the strategic mode shift target for 80 per cent of all trips to be made by public transport, walking and cycling by 2041.
- 3.2.151 A framework Travel Plan (TP) including an Action Plan was submitted with the application. Should permission be granted, a final TP would be secured by Condition 41 and the travel plan monitoring fee secured through the S106 deed.

Deliveries and servicing

- 3.2.152 LP Policy T7, Part G, states that developments should facilitate safe, clean, and efficient deliveries and servicing. Provision of adequate space for servicing, storage and deliveries should be made off-street, with on-street loading bays only used where this is not possible.
- 3.2.153 The submitted outline Delivery and Servicing Management Plan (prepared by Markides Associates, dates 18 January 2024, revision B) estimated that the development would generate approximately 13x two-way delivery and servicing trips per day, of which approximately 3x would be Other Goods Vehicle (OGV) and the remaining are Larger Goods Vehicle (LGV). No trips are expected to occur in the AM and PM peaks respectively. It is proposed that deliveries and servicing take place from the existing delivery bays located along Union Road and Clapham Road. It is recommended that a final Delivery and Servicing Management Plan is secured by condition (see Condition 40). The proposal complies with LP Policy T7 and LLP Policy T7 subject to this condition.

Construction management

- 3.2.154 LP Policy T7, Part E, requires planning applications to be accompanied by a Construction Management Plan, demonstrating arrangements for construction traffic and how environmental, traffic and amenity impacts would be minimised.
- 3.2.155 The submitted Framework Construction Traffic Management Plan (prepared by Markides Associates, dated 18.01.2024, reference 23151- MA-XX-XX-RP-D-CTMP01, revision C) was reviewed by the Council's transport team and TfL. The final Construction Logistics Plan and Construction and Environmental Management Plan would be secured by planning condition and TfL would be consulted (see Conditions 11 and 12).

Summary

- 3.2.156 The proposal does not have an unacceptable impact on the local or wider transport network and would promote sustainable modes of travel, subject to conditions and S106 obligations set out above.

Standard of accommodation

3.2.157 Development plan policies require new residential development to be of a high-quality design. LP Policy D6 requires new residential development to meet minimum size requirements and be provided with sufficient daylight and sunlight. LLP Policy H5 explains that new residential development will be expected to provide dual-aspect accommodation, unless exceptional circumstances are demonstrated, and meet the requirements for accessible housing as set out in LP Policy D7.

3.2.158 The last planning application (ref: 19/04768/FUL) at the Site was refused (see reason for refusal 3) because the scheme failed to offer sufficient gross internal area, bedroom, built-in storage, and there was an under provision of private amenity space.

Size, layout and access

3.2.159 LP Policy D6 and Table 3.1 sets out housing quality standards. Quantitative metrics include the setting the minimum size of dwellings, rooms, and outdoor spaces. Qualitatively, the policy seeks to maximise dual aspect and naturally lit layouts, make tenures imperceptible from each other, and ensure robust maintenance and management strategies are in place.

3.2.160 LLP Policy H5 explains that new residential development will be expected to provide dual-aspect accommodation, unless exceptional circumstances are demonstrated, and meet the requirements for accessible housing as set out in LP Policy D7.

3.2.161 The submitted accommodation schedule shows that all the proposed dwellings would meet or exceed standards in terms of overall unit sizes, bedroom size and built-in storage. Ceiling heights are proposed to be 2.5m, which matches the minimum height. Each unit would be served by at least two lifts and have two fire escape cores. The proposed development would comply with LP Policy D6 and LLP Policy H5.

3.2.162 Paragraph 4.1.2 of the Mayor's Housing Design Standards (HDS) London Plan Guidance (LPG) mentions that '*consideration should be given to the internal layout of homes, including vertical stacking, to reduce noise impacts (for example, between living rooms and bedrooms).*'

3.2.163 The application was reviewed by RSS, who advised that there appears to be some adverse stacking with a bedroom under a living room on the 3rd and 4th floor. On 12.08.2024, a revised set of plans was submitted that improved the stacking between flats on different floor levels. There remains one flat with a bedroom under a living room on the 3rd and 4th floor. The applicant's architect has advised that unfortunately if they were to change the layout for A4.04 this would result in a loss of a 3-bedroom flat due to space constraints. It is noted that noise is mitigated by having the living above instead of the kitchen. Given that there is only one flat with slightly compromised layout the proposal is considered acceptable.

Daylight and sunlight (within the development)

3.2.164 LP Policy D6 And the HDS LPG emphasises the importance of natural light for residential quality. While acknowledging the value of BRE guidelines for assessing daylight and sunlight, the policy encourages a flexible approach, particularly in higher-density area. This flexibility should consider local circumstances, housing capacity, and the evolving character of the area.

3.2.165 The submitted Daylight and Sunlight Report for within development (prepared by Right of Light Consulting, dated 15.12.2023) assesses whether the proposed homes would provide its future occupiers with adequate levels of natural light. The report has been reviewed by Arup & Partners Ltd (Arup), an independent daylight / sunlight consultant appointed by the Council.

Daylight

- 3.2.166 In respect to daylight, 64 out of 83 widows tested would meet or exceed the BRE Guidelines daylight factor targets, which equates to 77%. Overall, a good standard of daylight would be achieved to the proposed homes.

Sunlight

- 3.2.167 In respect to sunlight, 25 homes have a living room window which faces 90 degrees of due south. 22 of the 30 homes have a living room which receives a total of at least 1.5 hours of sunlight on 21 March. Overall, a good standard of sunlight would be achieved to the proposed homes.

Aspect, privacy, and outlook

- 3.2.168 LLP Policy H5 explains that new residential development will be expected to provide dual-aspect accommodation, unless exceptional circumstances are demonstrated, and meet the requirements for accessible housing as set out in LP Policy D7.
- 3.2.169 LLP Policy Q2, Part ii, states that acceptable standards of privacy should be provided without a diminution of the design quality.
- 3.2.170 Regarding aspect, 13x (43.3%) homes would be single aspect, and 17x (56.7%) homes would be dual aspect. Out of the 13 single aspect homes, 10x would be 1-bedroom/2-person and 2x would be 2-bedrooms/3-persons. Due to the floor layout of the proposed development, it is not possible to increase the number of dual aspect homes without compromising the size and deliverability of the proposal. On balance, those units are acceptable, and they would not warrant a reason for refusal of this planning application.
- 3.2.171 Regarding privacy and outlook, the layouts and floorplans have been designed in such a way to reduce overlooking between proposed homes. Where there are close relationships between the proposed homes mitigation measures would be employed to ensure amenity is safeguarded; this includes provision of balcony screens which would be secured by a planning condition (see Condition 21). Subject to this, the proposal would comply with LLP Policy Q2.

Internal noise

- 3.2.172 LP Policy D14, Part A, seeks to reduce, manage and mitigate noise to improve health and quality of life. LP Policy D13 refers to the Agent of Change principle and places responsibility for mitigating impacts from existing noise and other nuisance generating activities or uses on the proposed new noise sensitive development.
- 3.2.173 LLP Policy Q2 (v) states that the adverse impact of noise is reduced to an acceptable level using attenuation, distance, screening, or layout/orientation in accordance with LP Policy D14.
- 3.2.174 The submitted acoustic assessment (prepared by Sound Advice Acoustic Ltd, reference SA - 7601/2) notes that the Site is affected by road noise. The conclusion of the assessment notes that subject to design that proposal would achieve acceptable internal noise levels to the proposed residential units. The assessment was reviewed by RSS, an independent environmental services consultant appointed by the Council, who agreed with the conclusion of the report. To ensure that future residents are protected planning conditions securing this detail is recommended (see Condition 15 and 19).

Amenity space

Private and communal amenity space

- 3.2.175 LP Policy D6, Part F (9), mentions that where there are no higher local standards in the borough Development Plan Documents, a minimum of 5 sqm. of private outdoor space should be provided for 1-2 person dwellings and an extra 1 sqm. should be provided for each additional occupant, and it must achieve a minimum depth and width of 1.5m. This does not count towards the minimum Gross Internal Area space standards required in Table 3.1.
- 3.2.176 LLP Policy H5, Part B, requires all new homes to provide 30sqm private amenity space per house, for all new flatted development amenity space should be provided to the following quantities: 10sqm per flat either as a balcony/terrace/private garden or consolidated with communal amenity space; and for development of 10 or more residential units a further 50sqm per scheme of communal amenity space.
- 3.2.177 All new flats would have private balconies that either meet or exceed standards mentioned above. In addition, the proposed development would provide 54sqm of shared residential amenity space on 6th floor, which would have good access to sunlight. The proposed outdoor amenity space would be usable and would overcome the reason for refusal. The proposed development would comply with LP Policy D6 and LLP Policy H5.

Children's playspace

- 3.2.178 LP Policy S4 seeks to ensure that development proposals that include housing make provisions for good quality accessible play provision for all ages. The Mayor's Supplementary Planning Guidance Providing for Children and Young People's Play and Recreation sets out guidance to assist in this process. In summary it is recommended that 10sqm of play space is provided per child.
- 3.2.179 GLA developed a calculator that provides users with an indication of the possible number and age of children that could be expected to live in a new development. This calculator was used in assessing this planning application. The breakdown for required vs proposed play space for various age groups is shown on the table below:

Age group	Child Yield (market + social)	Area required (sqm)	Proposed (sqm)
0-4	3.0	30	0
5-11	2.0	20	0
12-15	0.5	5	0
16-17	0.2	2	0
Total	5.7	57	0

- 3.2.180 As it can be seen from the table above, the development creates a requirement to provide 57sqm of children's play space. Given the Site constraints it was not possible to provide any play space on Site. In events like this the LLP Annex 9 allows applicants to provide financial contribution to help provide the requirement play space off-site. Using the formula provided, the applicant would be required to pay £5,643 for the provision of play space in the nearby area. This would be secured through a S106 deed. The closest park is Larkhall Park, accessed via Gaskell Street, approximately 400m walking distance away from the Site.

Wheelchair accessible housing

- 3.2.181 LP Policy D7 requires residential developments to provide at least 10% of dwellings that would meet the Building Regulation Part M4(3) "Wheelchair user dwellings requirements", and all other dwellings (90%) to meet Building Regulation M4(2) "Accessible and adaptable dwellings". LP Policy D5 on inclusive design requires at least one lift per core to be a fire evacuation lift.

- 3.2.182 The development would provide 3x (10%) wheelchair accessible homes located on 1st, 2nd, and 3rd floors (flat numbers A1.02, A2.02, A3.02). Each home would have access to two lifts including a fire evacuation lift. The amount and location of the wheelchair homes is acceptable, and it would be secured by a planning condition (see Condition 5). Subject to this, the proposal would comply with LP Policies D5 and D7.

Summary

- 3.2.183 Having considered all the above, the proposed development would provide an acceptable standard of accommodation for future residents through design and mitigation. The previous reason for refusal mentioned above has been overcome. The application complies with LP Policies D6, D7 and S4, and LLP Policies H5 and Q2.

Trees, landscaping, and ecology

- 3.2.184 Strategic and local policies require development to be designed positively to integrate existing trees and maximise landscaping, new tree planting and biodiversity improvement opportunities. Where retention of trees is shown not to be possible, adequate replacement planting on or near the same location should be secured.

Trees

- 3.2.185 LLP Policy Q10 requires that proposals for new development consider existing trees on site and adjoining land.
- 3.2.186 There is 1x pear tree found south of the Site on the pavement along Union Road. This tree is outside of the application ownership and will be retained as part of the proposals.
- 3.2.187 It is proposed that one new street tree is planted within the application site along Clapham Road. Subject to securing the above, the proposed development would comply with LLP Policy Q10.

Landscaping

- 3.2.188 LLP Policy Q9 supports development where landscaping is fit for purpose, responds to pedestrian desire lines, avoids piecemeal or leftover spaces, incorporates sustainable drainage and is attractive and well-designed.
- 3.2.189 The Site consists entirely of built habitat. There is a 4-storey office building, hardstanding in the form of the courtyard, pavement along Union Road, Clapham Road and a small section of Union Road. The Site is subject to high levels of disturbance from the noise generated by traffic as well as artificial lighting from street lighting and lights within the courtyard.
- 3.2.190 The submitted Landscape Strategy includes information about the new street tree, green roof with solar panels, and 9x semi-intensive green roofs. The landscape masterplan is considered appropriate, and it would deliver overall improvements in terms of urban greening. The detailed landscaping plans will be required by condition (see Condition 23).

Urban Greening Factor (UGF)

- 3.2.191 LP Policy G1 and LLP Policy EN1 seek to secure high-quality landscaping, maximise opportunities for urban greening in new development, often through green roofs, tree planting, soft landscaping, and habitat provision.
- 3.2.192 LP Policy G5 and LLP Policy EN1 (Part F) introduced a tool known as an Urban Greening Factor (UGF) to assess the quality and quantity of proposed urban greening in development

proposals. Major developments are required to achieve score of 0.4 for residential-led developments and 0.3 for commercial developments. The UGF is intended to ensure a consistent and measurable approach to delivering greening on-site through soft landscaping, green roofs, tree planting and other interventions.

- 3.2.193 The last planning application (ref: 19/04768/FUL) at the Site was refused (see reason for refusal 7) because the scheme did not demonstrate sufficient greening and biodiversity gain. The submitted UGF calculation indicates that the proposal would target a UGF of 0.4 and any shortfall will result in a financial contribution secured by the S106. Compliance with the UGF would be secured by condition (see Condition 23(c)). The application therefore complies with LP Policies G1 and G5, and LLP Policy EN1 and the last reason for refusal mentioned above has been overcome.

Ecology

- 3.2.194 The NPPF, LLP Policy EN1 and LP Policy G6 set requirements for Biodiversity Net Gain (BNG).
- 3.2.195 The Environment Act 2021 made a 10% BNG mandatory for all developments, other than specific exemptions, from 12 February 2024 and for small sites from 2 April 2024.
- 3.2.196 Furthermore, the NPPF requires development proposals to manage impacts on biodiversity and aim to secure net biodiversity gain.
- 3.2.197 LLP Policy EN1 and LP Policy G6 set out that development proposals should protect, enhance, create or manage nature conservation and biodiversity interest and promote measures to increase the quantity and quality of the Borough's biodiversity and ecology, in accordance with the borough's Biodiversity Action Plan (BAP) and the Mayor's Biodiversity Strategy.
- 3.2.198 The submitted Preliminary Ecological Appraisal (prepared by Temple, number T9966, version 2.0) acknowledges that the Site is largely covered by building and hardstanding resulting in a biodiversity value is 0.02.
- 3.2.199 It is estimated that the proposed development would increase the biodiversity in excess of the required 10% gain. The Biodiversity and Environmental Compliance officer has reviewed the appraisal and found that it is acceptable subject to securing the recommend enhancements through planning conditions such as installation of bird and bat boxes (see Condition 24), details of the biodiversity roofs that include 25 species of plants, and landscaping scheme including planting of new trees and management plan (see Condition 23). The report also suggested a condition regarding nesting birds, as they are legally protected under the Wildlife and Countryside Act 1981, the planning process does not need to provide additional protection.
- 3.2.200 Compliance with the BNG requirements would be secured by way of a condition (Condition 16) which will require the applicant to submit a BNG Plan prior to commencement of the approved development. The Plan should provide evidence of the ability of the development to deliver the required units of biodiversity gain on-site, or off-site through an acceptable offsetting scheme or the purchase of such units from a third-party provider.
- 3.2.201 In conclusion, subject to conditions, it is considered the proposed development would comply with the aims and objectives of LP Policy G6, LLP Policy EN1, and the NPPF, and is considered acceptable, having regard to the impacts on ecology and biodiversity.

Open space deficiency

- 3.2.202 LP Policy G4 supports the protection, enhancement, and provision of open space, particularly in areas identified as deficient. Policy also encourages new developments to address local open space deficiencies, provide on-site public realm or green space where feasible, or contribute financially to off-site improvements.
- 3.2.203 LLP Policy EN1 requires protection and enhancement of existing open spaces. New developments should provide publicly accessible open space where possible and a financial contribution towards open space improvements where on-site provision is not viable, especially in areas of open space deficiency. Lambeth Open Space Strategy (2019–2024), identifies parts of the borough (particularly in the north and central areas) as suffering from quantitative and qualitative open space deficiencies.
- 3.2.204 The last planning application (ref: 19/04768/FUL) at the Site was refused (see reason for refusal 6) because the Site is in an area of open space deficiency and the proposal did not provide open space on site or offer to provide a financial contribution towards improvements of existing spaces through a S106 agreement.
- 3.2.205 Due to the Site constraints and viability, there are limited opportunities to provide any open space on Site. To address the last reason for refusal, officers negotiated a financial contribution of £9,275 to be secured for improvements to the play equipment and publicly accessible infrastructure, such as benches, bins, paths, soft landscaping, biodiversity, etc at Larkhall Park and/or Clapham Common. This would be secured through the S106 deed. Subject to this contribution, the development complies with LLP Policy EN1, Part D(ii) and the last reason for refusal mentioned above have been overcome.

3.3 Other planning considerations

- 3.3.1 Other planning issues that are relevant to this scheme are:

- Air quality
- Designing out crime
- Digital connectivity infrastructure
- Employment and training
- Flood risk and drainage
- Fire safety
- Ground contamination

Air quality

- 3.3.2 There is a Lambeth wide Air Quality Management Area (AQMA) plus Lambeth is also covered by the Non-Road Mobile Machinery (NRMM) Low Emission Zone.
- 3.3.3 LP Policy SI 1 recognises the need to tackle poor air quality, protect health and meet legal obligations. Paragraph 9.2 of the LLP states that Lambeth will apply LP Policy SI 1 to all development proposals in the borough. This states that development proposals should not lead to further deterioration of existing poor air quality, create any new areas that exceed air quality limits, or delay the date at which compliance will be achieved in areas that are currently in exceedance of legal limits, or create unacceptable risk of high levels of exposure to poor air quality. To meet these requirements, this policy requires proposals to be at least 'Air Quality Neutral'. Guidance on this is provided by the GLA in their Air Quality Neutral LPG.

- 3.3.4 An Air Quality Assessment (prepared by Hawkins Environmental Limited, dated 23.01.2024, ref: H3877 – AQ – v2, version V2) was submitted to support the application. The assessment has been reviewed for its impacts on air quality during demolition, construction and operational phases by the Council's Environmental Health consultants, RSS.
- 3.3.5 To minimise the impact of the development throughout both construction and completion regarding air quality, conditions are proposed requiring the submission of a CEMP (see Condition 12) and ensuring all Non-Road Mobile Machinery (NRMM) are used in accordance with the GLA's 'Control of Dust and Emissions during Construction and Demolition' SPG (see Condition 43). Subject to the recommended conditions being secured on any permission, the proposal is considered to have an acceptable impact on air quality, in accordance with LP Policy SI 1.

Designing out crime

- 3.3.6 LP Policy D11 states that development proposals should maximise building resilience and minimise potential physical risks, including measures to design out crime. Similarly, LLP Policy Q3 expects development to design out opportunistic crime, antisocial behaviour and fear of crime in a site-specific manner as well as address resilience to terrorism.
- 3.3.7 The Metropolitan Police (Design out Crime) reviewed the proposal and raised no concerns with its design provided that that pre-commencement and pre-occupation conditions (see Condition 27) are added to ensure end-to-end compliance with Secured by Design. Subject to the recommended conditions being secured on any permission, the proposal is considered to comply with LP Policy D11 and LLP Policy Q3.

Digital connectivity infrastructure

- 3.3.8 LP Policy SI 6 on digital connectivity infrastructure requires the provision of sufficient ducting for full fibre connectivity to all end users in new developments.
- 3.3.9 The development includes provision for full fibre broadband for all users of the building. A condition is recommended to ensure that fibre infrastructure is installed in accordance with the submitted information (see Condition 10). Subject to this condition, the development would be compliant with LP Policy SI 6.

Employment and training

- 3.3.10 LLP Policy ED15 states that planning obligations should be used to secure employment opportunities and apprenticeships arising from major developments, so that local residents are given access to the right skills training so that they can take advantage of opportunities created by new development. This includes the submission of a site-specific construction and end use phase Employment and Skills Plan (ESP), which will be secured as part of the S106 deed. The ESP would secure the following:
- A target of 25 per cent of all jobs created by the development (in both construction and net additional jobs for the first two years of the end use phase) to be secured by the Council for local residents;
 - Developers to engage with local schools, colleges and/or community organisations to promote amongst young people the range of careers available;

- The developer to make all reasonable endeavours to meet these obligations.

3.3.11 The LLP seeks major development to provide a financial contribution to help support and train those sections of the Lambeth workforce that are furthest from employment to enable them to access newly created employment opportunities which arise from the development. Using the formula provide in Annex 9 of LLP the development is required to contribute £19,500, which (in addition to the ESP) will be secured within the S106 deed. An ESP will also be required and secured in the S106 deed; this will relate to the construction and end use phases. However, the end use phase would be limited to the residential use, given there would be a net reduction in jobs in the office parts following a reduction in office floorspace in the proposed development.

Flood risk and drainage

Flood risk

3.3.12 LP Policy SI 12 requires development proposals to minimise flood risk and address any residual risk. This approach is reinforced by LLP Policy EN5.

3.3.13 The submitted Flood Risk Assessment (FRA) and Drainage Strategy (both prepared by Jomas Engineering Environmental, ref: P2288J1752, version 2.0, dated 08.03.2024) confirm that the Site is in Flood Zone 1 and an FRA is not required, however flooding from all sources have been considered within this report.

Drainage

3.3.14 LP Policy SI 13 and LLP Policies EN5 and EN6 require the use of sustainable urban drainage systems ('SUDS') unless there are overriding practical constraints. Proposals should achieve greenfield run-off rates and appropriately manage surface water. LP Policy SI 13 sets out a drainage hierarchy that prioritises natural over engineered drainage features.

3.3.15 The above-mentioned report was reviewed by the Lead Local Flood Authority (LLFA), and they are satisfied with proposed strategy. Should the application be approved, it was recommended that a further information to be secured by planning conditions (Conditions 17 and 46). Subject to the recommended conditions the proposal is considered to have sufficiently taken account of flooding risk and sustainable drainage and would comply with LP Policy SI 13, and LLP Policies EN5 and EN6.

Fire safety

3.3.16 The Town and Country Planning (Development Management Procedure and Section 62A Applications) (England) (Amendment) Order 2021 introduced the Gateway 1 requirement for relevant buildings. These include buildings over 18 metres in height or with seven or more storeys.

3.3.17 LP Policy D12 requires that all major developments must submit a fire statement addressing the policy criteria, and which are prepared by qualified, independent third party. LP Policy D5 also requires proposals achieve high standards of accessibility and include safe and dignified emergency evacuation for all users.

3.3.18 The proposed development falls within the Gateway 1 regime. In line with the requirements of LP Policy D12, a Fire Statement form and Outline Fire Safety Strategy (prepared by Ashton Fire, issue 02, dated October 2024) has been submitted. This includes qualification of the author and reviewer and addresses the following key elements: means of warning and escape,

Internal fire spread (linings), Internal fire spread (structure), External fire spread and Access and facilities for the fire and rescue service.

- 3.3.19 The Health and Safety Executive (“HSE”), as statutory consultee under Planning Gateway One, has been consulted on the proposed development and their concerns and advice should be resolved by the applicant at Planning Gateway Two and through the Building Regulations process. These matters are not considered to affect land use acceptability and will be addressed at the appropriate regulatory stage. The proposal is therefore considered to comply with the requirements of the NPPF and LP Policies D5, D11 and D12 The fire statement and associated fire strategy would be secured by condition (see Condition 18).

Ground contamination

- 3.3.20 LLP Policy EN4 states that proposals should include an assessment of existing ground conditions and identify appropriate remedial measures for any contaminated land prior to development commencing. It further states “*Where contamination exists, a remediation strategy should be submitted to the council for approval and implemented by a suitably qualified person prior to development commencing*”.
- 3.3.21 No contamination desk study has been submitted. RSS advised that previous records show contamination conditions were requested during the 2019 development. To ensure that there is no risk of contamination, a four-part planning condition is proposed that would investigate and deal with any potential contamination if found (see Condition 14).

3.4 Planning obligations and CIL

Planning obligations

- 3.4.1 LLP Policy D4 and Annex 9 sets out the Council’s policy in relation to seeking planning obligations and the charging approaches for various types of obligation. For contributions that are not covered by Annex 9, the Council’s approach to calculating contributions is guided by the Affordable Workspace SPD (adopted 2022).
- 3.4.2 The planning obligations that are proposed are considered necessary to make the development acceptable in planning terms, are directly related to the development and are fairly and reasonably related in kind and in scale to the development. They are therefore compliant with the requirements of Regulation 122 of the Community Infrastructure Levy Regulations 2010.

3.4.3 The proposed obligations to be secured through the S106 deed are as follows:

Planning obligation	Mitigation
Affordable housing	• Contribution of £390,000.00 towards off-site affordable housing. • Early and late-stage reviews.
Energy and sustainability	• A carbon offset payment to be calculated and paid prior to occupation (currently anticipated to be £14,905.00). • Future-proof connection to DHN.
Transport	• A financial contribution of £25,000.00 towards the delivery of Healthy Routes Networks improvements. • A financial contribution of £40,000.00 (£10,000.00 per bay and £10,000.00 for an electric vehicle charging point for each bay) towards 2 off-site Blue Badge car parking spaces located on Union Road and Car Parking Management Plan. • Travel Plan monitoring fee of £7,755.00 • Car parking permit-free. • Car hire membership for all future residential occupiers • Cycle hire membership for all future residential occupiers
Employment and Skills	• An Employment and Skills Plan for the construction and end use stages. • A financial contribution of £19,500 towards employment and skills.
Open Space	• A financial contribution of £9,275.00 towards improvements of publicly accessible infrastructure, such as benches, bins, paths, soft landscaping, biodiversity, etc at the Larkhall Park and/or Clapham Common. • A financial contribution towards improvements of biodiversity (currently anticipated to be £2,000.00 as subject to final UGF score).
Play space	• A financial contribution of £5,643.00 towards improvements to play space within local area.
Monitoring fee	• Monitoring fee of up to 5% of total financial obligations. • Financial contributions shall be index-linked. • Membership of the Considerate Contractors Scheme.

NB – all financial contributions shall be index-linked

CIL

3.4.4 If the application is approved and the development is implemented, a liability to pay the Lambeth Community Infrastructure Levy (CIL) will arise.

3.4.5 Expenditure of the majority of a future CIL receipt will be applied towards Borough infrastructure needs in accordance with the applicable policies and procedures relating to expenditure decisions.

- 3.4.6 Allocation of CIL monies to particular infrastructure projects is not a matter for consideration in the determination of planning applications.
- 3.4.7 The estimated Lambeth CIL for this development is £1,202,177.79. The estimated Mayoral CIL for this development is £213,912.55. Please note that these CIL figures are indicative and will be confirmed if permission is granted.

3.5 Equality duty and human rights

- 3.5.1 The beginning of the Agenda Pack sets out the legislative background to equalities and human rights considerations and the approach that the decision-maker needs to take. Reference should be made to those materials.
- 3.5.2 Officers do not consider that the proposal would have any adverse impact on people with protected characteristics or that the rights of individuals under the European Convention on Human Rights would be infringed by the proposed development.
- 3.5.3 If Members disagree with officers' assessment and consider that there would be an impact not identified by officers, or that the impact identified would be greater than as set out by officers, they should consider whether the weight to be given to that impact when considering the planning balance is such as to mean that planning permission should be refused.

3.6 Planning balance and conclusion

Compliance with the development plan

- 3.6.1 Section 70(2) of the Town and Country Planning Act 1990 states that in dealing with an application for planning permission the local planning authority shall have regard to the provisions of the development plan, so far as material to the application, a post-examination draft neighbourhood development plan, any local finance considerations (as defined in section 70(4), to include CIL receipts) and to any other material considerations. Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires planning decisions to be made in accordance with the development plan unless material considerations indicate otherwise.
- 3.6.2 When assessing whether an application complies with the development plan, it is necessary to look at the development plan as a whole. There may be policies that pull in different directions. It is necessary to reach a judgement about whether, when looked at overall, the application amounts to a departure from the development plan. Factors relevant to this judgement can include the number of policies not complied with, the extent of any non-compliance, how up to date various policies are, and whether a policy relates to the principle of development or a more minor aspect.
- 3.6.3 The Site is previously developed land in a sustainable location with excellent access to transport and services. The proposed development seeks to deliver a mixed-use development comprising 30x homes (Use Class C3) and 210sqm of office floorspace (Use Class Eg(i)). This represents a 2.24% contribution towards the borough's annual housing target of 1,335 homes. In this context, the contribution of the development to Lambeth's housing supply is significant and should be afforded appropriate weight. In line with paragraph 124 of the NPPF and LP Policy GG2, the proposed development supports the effective use of land by making optimal use of this brownfield.
- 3.6.4 The architectural design would be of high quality and provide an acceptable standard of accommodation. The proposed height is in keeping with the surrounding context, and the

development would respond positively to the local townscape. Officers consider that the proposal would result in no harm to the setting of non-designated listed buildings (Phoenix Public House) or the character and appearance of the Clapham Road and the Sibella Road Conservation Areas.

- 3.6.5 The design development has considered its context including neighbouring uses, to minimise impacts with regard to neighbouring residential amenity whilst optimising the development for housing delivery, addressing the borough's acute need for housing.
- 3.6.6 The development would be car free, and it would provide Blue Badge parking spaces approximately 90m from the Site, which given the Site constraints is acceptable, whilst being capable of being serviced without harming highway safety or the functioning of the public transport network. There would be an acceptable quantum of bicycle parking. Environmental impacts, including flood risk, drainage, noise, air quality, waste and recycling, land contamination, basement impact and archaeology are considered to be acceptable, subject to the imposition of suitably worded planning conditions.
- 3.6.7 When the development plan is looked at as a whole, in officers' assessment the proposal accords with it. The development plan policies identified as relevant to the assessment of the application are all complied with.

Other material considerations

- 3.6.8 Officers consider that the application would offer the following public benefits which are material considerations weighing in favour of the application:

Regeneration of brownfield site for housing (substantial weight)

- 3.6.9 Paragraph 125(c) of the NPPF states that substantial weight should be given to the use of suitable brownfield land within settlements for homes and other identified needs and such proposals should be approved unless substantial harm would be caused. The proposal would make effective use of land by reusing previously developed land to deliver comprehensive regeneration with acceptable uses and high architectural quality. The Site is also located in a sustainable location that is accessible by public transport with good cycling and pedestrian links.
- 3.6.10 The 30 homes proposed would count towards the Council's housing target, with a 2.24 per cent contribution to its annual target. The Council has delivered 74 per cent of its housing target in the three years between 2020-2023 and is subject to the 'tilted balance' within paragraph 11(d) of the NPPF. The provision of housing is also a strategic priority within the development plan. Accordingly, and noting paragraph 125(c) of the NPPF referenced above, the contribution these homes would make toward the Council's housing target is given substantial weight

Affordable housing (significant weight)

- 3.6.11 The development would provide a contribution of £390,000.00 towards the delivery of off-site affordable housing (equating to 8% of its housing as affordable homes). As acknowledged at para. 2.66 of the LLP, affordability is a major issue in Lambeth, and 1,573 additional affordable homes are needed per annum based on households spending 30% of their gross income. The affordable homes proposed would contribute to meeting this need.
- 3.6.12 As also acknowledged by the LLP, there are many households on waiting lists due to this shortage of affordable housing. The cost of temporary accommodation required to house these households has now grown to a point that it impacts on all other parts of the Council's budget. Accordingly, the affordable housing is given substantial weight.

Economic (significant weight)

- 3.6.13 The NPPF states at paragraph 85: “Significant weight should be placed on the need to support economic growth and productivity, taking into account both local business needs and wider opportunities for development.” The development would provide new, flexible employment floorspace, as well as employment and training initiatives for local people. Substantial weight is given to this benefit.

Design and public realm (moderate weight)

- 3.6.14 The proposal would optimise the potential of this brownfield Site using a design-led approach. The siting, layout, scale, and architectural detailing are considered acceptable and consistent with the character and appearance of the surrounding area. The proposal would result in street scene improvements including a high-quality new building with an active frontage and new public realm.

Urban Greening, Biodiversity and Climate Resilience (moderate weight)

- 3.6.15 The scheme targets an UGF score of 0.4 and any shortfall will result in a financial contribution. It would improve biodiversity at the Site and exceed the required 10% nett gain increase. These measures contribute to biodiversity, climate adaptation and drainage management objectives.

Sustainable Development and Carbon Reduction (moderate weight)

- 3.6.16 The development would deliver a 79% reduction in carbon emissions with the remainder offset via a financial contribution. It incorporates a communal air and water source heat pump system, high fabric efficiency, and PV panels, all of which contribute to London’s net zero carbon ambitions.

Transport (moderate weight)

- 3.6.17 The development would be ‘car free’ and provide an appropriate quantity of cycle parking spaces for this location and would be further supported by sustainable transport initiatives, including a financial contribution towards walking and cycling improvements in the area.

Conclusion

- 3.6.18 In officers’ assessment the application complies with the development plan when looked at overall.
- 3.6.19 There are material considerations in favour of the scheme, namely the delivery of additional housing, a contribution towards off-site affordable housing, and replacement office space. No material considerations have been identified that outweigh the merits of the proposal. Officers are therefore recommending that the application is approved.

3.7 Recommendations

1. Resolve to **grant conditional planning permission** subject to the completion of a satisfactory deed under Section 106 of the Town and Country Planning Act 1990 containing the planning obligations as set out in this report, addenda and/or PAC minutes.
2. Agree to delegate authority to the Director of Climate, Planning and Transport to: (a). Finalise the recommended conditions as set out in this report, addenda and/or PAC minutes; and (b). Negotiate, agree and finalise the planning obligations as set out in this report, addenda and/or PAC minutes pursuant to Section 106 of the Town and Country Planning Act 1990.
3. In the event that the Committee resolves to refuse planning permission and there is a subsequent appeal, delegated authority is given to the Director of Climate, Planning and Transport, having regard to this report, addenda and/or PAC minutes, to propose planning conditions and to negotiate and complete a document containing obligations pursuant to Section 106 of the Town and Country Planning Act 1990 in order to meet the requirement of the Planning Inspector.
4. In the event that a satisfactory Section 106 deed is not completed within six months of the date of the Committee meeting, delegated authority is given to the Director of Climate, Planning and Transport to refuse planning permission for failure to enter into a Section 106 deed providing for the obligations considered necessary to make the development acceptable in planning terms as identified in this report, addenda and/or the PAC minutes.

4. Appendices

Appendix 1 – Draft Decision Notice

Your Ref:
Our Ref: 24/01346/FUL



Mr Stuart Minty
SM Planning
80-83 Long Lane
London
EC1A 9FT

DRAFT DECISION NOTICE

Dear Mr Stuart Minty

TOWN AND COUNTRY PLANNING ACT 1990.

PERMISSION FOR DEVELOPMENT

The London Borough of Lambeth hereby permits under the above-mentioned Acts and associated orders the development referred to in the schedule set out below **subject to any conditions and s106 legal agreement imposed** therein and in accordance with the plans submitted, save in so far as may otherwise be required by the said conditions.

In accordance with the statutory provisions your attention is drawn to the statement of Applicant's Rights and General Information attached.

Application Number: 24/01346/FUL **Date of Application:** 29.04.2024 **Date of Decision:**

Proposed Development At: 346 Clapham Road, London, SW9 9AP

For: Demolition of a 4-storey office building (Use Class E) and redevelopment of the site involving the erection of a 7-storey building to provide office floorspace (Use Class E(g)(i)) and 30 residential units (Use Class C3) together with relocation of the substation, the provision of cycle and refuse store.

Conditions:

1. **Time Limit**

The development to which this permission relates must be began no later than three years from the date of this decision notice.

Reason: To comply with the provisions of Section 91 of the Town and Country Planning Act 1990 (as amended).

2. **Approved drawings**

The development hereby permitted shall be carried out in complete accordance with the approved plans and drawings listed in this decision notice, other than where those details are altered pursuant to the conditions of this planning permission.

Reason: For the avoidance of doubt and in the interests of proper planning.

3. **Use**

Notwithstanding the provisions of the Town and Country Planning (General Permitted Development) (England) Order 2015 (or any order revoking and re-enacting that Order with or without modification), the ground floor units marked as 'office' on the approved plans shall only be used for purposes that fall within Use Class E(g)(i) of the Town and Country Planning (Use Classes) Order 2020 (as amended) (or any order/s revoking and re-enacting those orders with or without modification) and shall not be used for any other purpose.

Reason: To safeguard the office use (Policy E2 of the London Plan (March 2021) and Policy ED1 of the Lambeth Local Plan (September 2021)).

4. **Hours of use**

The office units (Use Class E(g)(i)) on the ground floor shall only be open for customer business between the hours of 07:00 and 22:00 on Monday to Saturday and 09:00 and 20:00 on Sundays and Bank Holidays / Public Holidays.

Reason: To protect the amenities of future residential occupiers and the surrounding area (Policy D6 of the London Plan (March 2021) and Policies Q2, ED7 and ED9 of the Lambeth Local Plan (September 2021)).

5. **Wheelchair housing**

At least 10% (3x homes) of the residential units hereby permitted hereby permitted shall be wheelchair adaptable/accessible units constructed to comply with Part M4 (3) of the Building Regulations. Any communal areas and accesses serving the M4 (3) compliant Wheelchair User Dwellings should also comply with Part M4 (3). All other residential units, communal areas and accesses hereby permitted shall be constructed to comply with Part M4 (2) of the Building Regulations.

Reason: To secure appropriate access for disabled people, older people and others with mobility constraints (Policy D7 of the London Plan (March 2021) and Policies Q1 and H5 of the Lambeth Local Plan (September 2021)).

6. **No external rainwater pipes**

No plumbing or pipes, other than rainwater pipes, shall be fixed to the external faces of the building unless the prior written approval of the local planning authority is obtained to any variation, or except where otherwise stated on the approved drawings.

Reason: To ensure an appropriate standard of design (Policy D4 of the London Plan (March 2021) and Policies Q2, Q5, Q7, and Q15 of the Lambeth Local Plan (September 2021)).

7. **Ground floor commercial frontages**

The window glass of each commercial unit shall be clear glass and shall not be mirrored, tinted or otherwise obscured. The development shall be permanently maintained in this form. No external security roller shutters or roller blinds shall be attached to the shop fronts hereby permitted.

Reason: To prevent visual clutter, and to ensure a satisfactory external appearance to the design of the building (Policies Q6 and Q8 of the Lambeth Local Plan (September 2021)).

8. **Energy statement**

The development shall be built in accordance with the approved Energy Statement (prepared by Sustain Quality Ltd, number 001121, version 3., dated 12/03/2024) demonstrating how the development will follow the hierarchy of energy efficiency, decentralised energy and renewable energy technologies to secure a minimum 35% reduction in CO2 emissions beyond Building Regulations Part L 2021.

Reason: To ensure that the development has an acceptable level of sustainability and it makes the fullest contribution to minimising carbon dioxide emissions (Policies SI 2 and SI 3 of the London Plan (March 2021), and Policy EN4 of the Lambeth Local Plan (September 2021)).

9. **Telecommunications equipment**

Notwithstanding the provisions of the Town and Country Planning (General Permitted Development) (Amendment) (No.2) (England) Order 2015 (or any Order revoking or re-enacting that Order with or without modification), no aerials, antennae, satellite dishes or related telecommunications equipment shall be erected on any part of the development hereby permitted.

Reason: To ensure that the visual impact of telecommunication equipment upon the surrounding area can be considered (Policy SI 6 the London Plan (March 2021) and Policies T9 of the Lambeth Local Plan (September 2021)).

10. **Digital connectivity**

Sufficient ducting space for full fibre connectivity infrastructure must be provided within the development.

Reason: To provide high quality digital connectivity infrastructure to contribute to London's global competitiveness (Policy SI 6 of the London Plan (March 2021) and Policy T9 of the Lambeth Local Plan (September 2021)).

NO DEVELOPMENT

11. **Construction logistics plan**

No development including demolition shall take place until a construction logistics plan has been submitted to and approved in writing by Local Planning Authority. The plan shall be based

on the submitted Framework Construction Traffic Management Plan (prepared by Markides Associates, revision C, dated 18.01.2024) and it shall include the following detail:

- a) the parking of vehicles of site operatives and visitors;
- b) loading and unloading of plant and materials;
- c) storage of plant and materials used in construction the development;
- d) the erection and maintenance of security hoardings including decorative displays and facilities for public viewing;
- e) wheel washing facilities;
- f) a scheme for recycling/disposing of waste resulting from demolition and construction works;
- g) measures for the control and reduction of dust; and
- h) measures for the control and reduction of noise and vibration.

The construction of the development shall be carried out in accordance with the approved plan.

Reason: To ensure satisfactory construction traffic and vehicle management (Policy T7 of the London Plan (March 2021) and Policy T7 of the Lambeth Local Plan (2021)).

12. **Construction environmental management plan**

No demolition or development shall commence until a Construction Environmental Management Plan (CEMP) has been submitted to and approved in writing by the local planning authority. The CEMP shall include details of the following relevant measures:

- I. A description of the main contractors' management responsibilities including complaint recording and management;
- II. A description of the construction and demolition programme which identifies activities likely to cause high levels of noise or dust and the specific mitigation measures to be employed;
- III. A named person for residents to contact within the main contractors' organisation;
- IV. Detailed site logistics arrangements including provision of a suitable booking system for HGV deliveries;
- V. Details regarding parking, deliveries, and storage;
- VI. A Traffic Management Plan, outlining construction vehicle routing and how traffic congestion and the impact on the surrounding area will be minimised as a result of the construction works, whilst maintaining safe access routes for pedestrians and other key stakeholders;
- VII. A suitably qualified person shall develop a scheme of ongoing continuous monitoring and reporting of construction noise and dust impacts against suitable targets in accordance with BS5228 Code of Practice for Noise and Vibration control and the Mayor of London's SPG 2014 and provision of monitoring results and including any actions arising to the local planning authority;
- VIII. Site delivery hours and other measures to mitigate the impact of construction on the amenity of the area and safety of the highway network;
- IX. Communication procedures with the LBL and local community regarding key construction issues – newsletters, fliers etc.;
- X. A Site Wide Waste Management Plan (SWWMP) demonstrating how waste from demolition and construction will be minimised and dealt with giving due regard to the waste hierarchy, with minimal (target of less than 5 per cent by weight) disposal to landfill (the SWWMP shall include details of the likely destination of all waste streams (beyond the Materials Recycling Facility) and a written confirmation that the destination landfill(s) has/have the capacity to receive waste).

- XI. An Air Quality and Dust Management Plan (AQDMP) in accordance with the GLA's Control of Dust and Emissions during Construction and Demolition SPG 2014:
- a. Summary of work to be carried out;
 - b. Proposed haul routes, location of site equipment including supply of water for damping down, source of water, drainage and enclosed areas to prevent contaminated water leaving the site;
 - c. Inventory and timetable of all dust and NOx air pollutant generating activities;
 - d. List of all dust and emission control methods to be employed and how they relate to the Air Quality (Dust) Risk Assessment;
 - e. Details of any fuel stored on-site;
 - f. Details of a trained and responsible person on-site for air quality (with knowledge of pollution monitoring and control methods, and vehicle emissions);
 - g. Summary of monitoring protocols and agreed procedure of notification to the local authority; and
 - h. A log book for action taken in response to incidents or dust-causing episodes and the mitigation measure taken to remedy any harm caused, and measures employed to prevent a similar incident reoccurring.

No demolition or development shall commence until all necessary pre-commencement measures described in the AQDMP have been put in place and set out on site. The construction work shall thereafter be carried out in accordance with the details and measures approved in the CEMP, unless the written consent of the local planning authority is received for any variation.

Reason: Development must not commence before this condition is discharged to avoid hazard and obstruction being caused to users of the public highway, to safeguard residential amenity from the start of the construction process, and to reduce the environmental impact of demolition and construction (Policies SI 1, SI 7 and T7 of the London Plan (2021), and Policies T7, EN7 and Q2 of the Lambeth Local Plan (2021)).

13. **Tunnel Safeguarding**

No development including demolition shall take place until detailed design and method statements (in consultation with London Underground) for demolition, all of the foundations, ground floor structures, or for any other structures below ground level, including piling (temporary and permanent), have been submitted to and approved in writing by the Local Planning Authority which:

- a) provide demolition and construction details on all structures
- b) accommodate the location of the existing London Underground structures and tunnels
- c) accommodate ground movement arising from the construction thereof - tunnel monitoring may be required
- d) and mitigate the effects of noise and vibration arising from the adjoining operations within the structures and tunnels.

The development shall thereafter be carried out in all respects in accordance with the approved design and method statements, and all structures and works comprised within the development hereby permitted which are required by the approved design statements in order to procure the matters mentioned in paragraphs of this condition shall be completed, in their entirety, before any part of the building hereby permitted is occupied.

Reason: To ensure that the development does not impact on existing London Underground transport infrastructure (Policy T3 of the London Plan (March 2021) and 'Land for Industry and Transport' Supplementary Planning Guidance 2012).

14. Contamination

- a) No development other than demolition shall take place until the following components of a scheme to deal with the risks associated with contamination of the site have been submitted to and approved in writing by the local planning authority:
 - i. a desk study and site investigation scheme based on previous findings to provide information for a detailed assessment of the risks, including specific consideration of asbestos and organic compounds and unexploded ordnance to all receptors, including those off-site; that may be affected,
 - ii. the site investigation results and the detailed risk assessment resulting from i);
 - iii. an options appraisal and remediation strategy giving full details of the remediation measures required and how they are to be undertaken;
 - iv. a verification plan providing details of the data that will be collected in order to demonstrate that the works set out in iii) are complete and identifying any requirements for longer-term monitoring of pollutant linkages, maintenance and arrangements for contingency action. The development shall thereafter be implemented in accordance with the details and measures approved.
- b) Prior to occupation of any part of the development, a verification report demonstrating completion of the works set out in the approved remediation strategy and the effectiveness of the remediation shall be submitted to and approved in writing by the local planning authority. The report shall include results of sampling and monitoring carried out in accordance with the approved verification plan to demonstrate that the site remediation criteria have been met. It shall also include any plan (a “long-term monitoring and maintenance plan”) for longer-term monitoring of pollutant linkages, maintenance and arrangements for contingency action, as identified in the verification plan, and for the reporting of this to the local planning authority.
- c) If, during development, contamination not previously identified is found to be present at the site then no further development shall be carried out until the developer has submitted and obtained written approval from the Local Planning Authority for, an amendment to the remediation strategy detailing how this unsuspected contamination will be dealt with.

Reason: Development must not commence before relevant parts of this condition are discharged to safeguard future users or occupiers of this site and the wider environment, including groundwater, from irreversible risks associated with the contaminants which are present by ensuring that the contaminated land is properly treated and made safe before development. Depending on the outcome of any ground investigation and subsequent risk assessment, it may be necessary for remediation to be carried out. If this is the case, it will be necessary to demonstrate that any work has been carried out effectively and the environmental risks have been satisfactorily managed (section 2.1.8 of the London Plan (2021) and EN4 of the Lambeth Local Plan (2021)).

15. Environmental noise

- a) No development other than demolition shall take place until a scheme of noise mitigation and mechanical ventilation sufficient to prevent overheating and maintain thermal comfort has been submitted to and approved in writing by the Local Planning Authority. The

Assessment shall be based on the CIBSE overheating position statement and shall demonstrate that CIBSE TM59 methodology has been used and CIBSE TM49 modelling requirements have been suitably considered. The scheme of noise mitigation shall be based on the principles detailed in the Sound Advice Environmental Noise Impact Assessment dated 5th October 2023 and shall include details of suitable mechanical ventilation which shall then be designed in accordance with the ANC Acoustics Ventilation and Overheating: Residential Design Guide 2020. The scheme shall include performance details and a glazing plan sufficient to achieve the habitable and commercial room standards as detailed in BS8233:2014 with no relaxation for exceptional circumstances and appropriate consideration of L_{Amax} including details of post construction validation measurements.

- b) Prior to occupation a final verification report shall be submitted to and approved in writing by the local Planning authority. All work must be carried out by suitably qualified person and the approved noise, vibration attenuation and ventilation measures shall thereafter be retained and maintained in working order for the duration of the use in accordance with the approved details.

Reason: To protect the amenities of adjoining occupiers and the surrounding area (policy Q2 of the Lambeth Local Plan (2021)).

16. **Biodiversity net gain (BNG)**

No development shall commence until a Biodiversity Gain Plan and Biodiversity Management Plan (also known as a Habitat Management & Monitoring Plan or HMMP) has been submitted to and approved in writing by the planning authority, demonstrating a minimum 10% net gain in biodiversity.

The Biodiversity Gain Plan must include matters outlined in paragraph 14(2) of Schedule 7A of the Town and Country Planning Act 1990, and the following information, where relevant:

- (a) Baseline data collection and assessment of current conditions on site,
- (b) A commitment to measures in line with the Mitigation Hierarchy and evidence of how BNG Principles have been applied to maximise benefits to biodiversity,
- (c) Provision of the full BNG calculations, with detailed justifications for the choice of habitat types, distinctiveness and condition, connectivity and ecological functionality,
- (d) Details of the implementation measures and management of proposals,
- (e) and,
- (f) Details of the monitoring and auditing measures.

The approved development shall thereafter be implemented in accordance with the approved Biodiversity Gain Plan.

The Biodiversity Management Plan (or HMMP) shall include 30-year objectives, management responsibilities, maintenance schedules and a methodology to ensure the submission of monitoring reports.

Monitoring reports shall be submitted to the Council during years 2, 5, 7, 10, 20 and 30 following commencement of development, unless otherwise stated in the approved Biodiversity Management Plan, and demonstrate how the BNG is progressing towards achieving its objectives, evidence of arrangements and any rectifying measures needed.

Reason: To ensure the development delivers biodiversity net gain in accordance with the provisions of the Environmental Act (2021) Policy EN1 of Lambeth Local Plan (2021) and Policy G6 of the London Plan (2021) and the National Planning Policy Framework (2024).

17. **Flood risk and drainage**

No development other than demolition shall commence on site until a detailed design for the surface water drainage system and associated pipework presented in the Flood Risk Assessment & Drainage Strategy has been submitted to and approved in writing by the local planning authority. The scheme for the surface water drainage shall be carried out in accordance with the approved details before the development is first put in to use/occupied.

Reason: To ensure the development is provided with a satisfactory means of drainage and in the interests of securing a more sustainable development and to reduce the impact of flooding both to and from the development and third parties in accordance with Policy SI 13 of the London Plan (2021) and Policy EN6 of the Lambeth Local Plan (2021).

PRIOR TO ABOVE GROUND WORKS

18. **Fire strategy**

Prior to commencement of the above ground works, an updated Fire Strategy shall be submitted to and approved in writing by the local planning authority. The strategy document should be completed fully in line with guidance published by MHCLG, by a suitably competent person. The fire safety measures, and design must be retained as such for the lifetime of the development.

Reason: To achieve the highest standards of fire safety and ensure the safety of all building users (Policies D5 and D12 of the London Plan (March 2021) and Policy Q2 of the Lambeth Local Plan (September 2021)).

19. **Full plant noise assessment**

- a) Prior to commencement of the above ground works a scheme of assessment of the acoustic impact arising from the operation of all internally and externally located commercial plant shall be submitted to and approved in writing by the Local Planning Authority. The assessment of the acoustic impact shall be undertaken in accordance with BS 4142: 2014 (or subsequent superseding equivalent) and other relevant measures and shall include a scheme of attenuation measures to ensure the rating level of noise emitted from the proposed building services plant is no greater than 5 dbA less than background.
- b) The use of the building or the operation of any building services plant, shall not commence until a post-installation noise assessment has been carried out by a suitably qualified acoustic consultant including suitable measurements to confirm compliance with the approved noise criteria which shall be submitted to and approved in writing by the Local Planning Authority. The scheme shall be implemented in accordance with the approved details and attenuation measures, and they shall be permanently retained and maintained in working order for the duration of the use and their operation.

Reason: To minimise increased exposure to existing poor air quality and make provision to address local problems of air quality (particularly within AQMAs) (Policy SI 1 of the London Plan (March 2021) and Policy EN4 of the Lambeth Local Plan (September 2021)).

20. **Non combustion heating scheme**

Prior to commencement of the above ground works a detailed desk study and design scheme for the installation of individual air source heat pumps (ASHP) servicing each individual residential unit hereby permitted shall be submitted to and approved in writing by the Local Planning Authority. The scheme shall include an assessment of the noise impacts of the ASHP units on adjoining sensitive rooms of both the host properties and neighbouring premises and shall include suitable noise mitigation sufficient to achieve a noise rating of 5dB below background noise levels at the receiving windows of each sensitive habitable room. The scheme shall include provision of suitable antivibration mounts and where necessary suitably specified acoustic enclosures. All details as approved shall be retained and suitably maintained for the duration of the use hereby approved.

Reason: To minimise increased exposure to existing poor air quality and make provision to address local problems of air quality (particularly within AQMAs) (Policy SI 1 of the London Plan (March 2021) and Policy EN4 of the Lambeth Local Plan (September 2021)).

21. **Detailed design**

Prior to commencement of relevant works and notwithstanding the details shown on the drawings hereby approved, construction drawings of all external elevations (at scale 1:10) including the following items shall be submitted to and approved in writing by the local planning authority:

- a) Detailed external elevations;
- b) Details of windows (including technical details, opening methods, elevations, reveal depths, plans and cross sections);
- c) Details of entrances, canopies and doors (including technical details, elevations, surrounds, reveal depths, plans and sections);
- d) Details of balustrading;
- e) Details of roof treatments, cills and parapets;
- f) Details of rainwater goods (including locations and fixings shown in external elevations);
- g) Details of boundary treatments including external walls, fences and gates;
- h) Details of external furniture, lighting, steps and ramps;
- i) Vents, extracts, flues and ducts (including shown on external elevations);
- j) Privacy screens and obscure glazing;
- k) Building signage; and
- l) Mailboxes.

The development shall not be carried out other than in accordance with the approved details unless otherwise agreed in writing by the local planning authority.

The privacy screens shall be installed in full accordance with the approved details prior to the occupation of any part of the development hereby approved, and shall be retained as such for the duration of the development.

Reason: To ensure that the external appearance of the building is satisfactory (Policies Q2, Q5, Q7 and Q15 of the Lambeth Local Plan (2021)).

22. **External materials**

Notwithstanding the details within the application hereby approved, prior to the commencement of relevant works, drawings (at 1:10 scale [including sections] showing all external construction detailing), for the relevant part of the development shall be submitted to and approved in writing

by the local planning authority, unless otherwise agreed in writing by the local planning authority. The drawings shall include details of:

- a) A technical specification schedule of the external materials, including but not limited to building facades, soffits, copings, terraces and balustrades, entrances and external doors, cills, windows, reveals, ramps, roof treatments, plant screens, and boundary treatments.
- b) Sample panels to be made available on site (or another convenient local location), at a scale of 1:1, for inspection showing 'typical' façade construction and illustrating the materials and their construction detailing.
- c) A photographic record of the sample panels, taken on site at midday.

The development shall not be carried out other than in accordance with the approved details unless otherwise agreed in writing by the local planning authority.

Reason: To ensure that the external appearance of the building is satisfactory (Policies Q2, Q5 and Q7 of the Lambeth Local Plan (2021)).

23. Landscaping and green roof

- a) Prior to commencement of the above ground works a scheme of soft landscaping (showing any trees and/or hedges to be retained and proposed plant numbers, species, location and size of trees and tree pits) and details of the management and maintenance of the landscaping for a period of five years shall be submitted to and approved in writing by the Local Planning Authority.
- b) Prior to commencement of the above ground works a green roof planting scheme that includes at least 25 species of plants and details of the management and maintenance of the green roof for the lifetime of the development shall be submitted to and approved in writing by the Local Planning Authority.
- c) The soft landscaping and green roof planting schemes must demonstrate that the development would achieve the Urban Greening Factor of at least 0.4 or better.
- d) All planting, seeding or turfing shall be carried out in the first planting and seeding seasons following the completion of the development, in accordance with the approved scheme under part (a).
- e) Any trees, hedge, and/or plants which within a period of five years from the completion of the development die, are removed or become seriously damaged or diseased, shall be replaced in the next planting season with others of similar size and species. The green roofs shall be thereafter maintained in accordance with the approved details for the lifetime of the development.

Reason: To introduce high quality soft landscaping in and around the site in the interests of the ecological value of the site and to ensure a satisfactory landscaping of the site in the interests of visual amenity (Policies G5 and G6 of the London Plan (March 2021) and Policies EN1, Q6, and Q9 of the Lambeth Local Plan (September 2021)).

24. Bird and bat boxes

Prior to commencement of the above ground works details of the number, type and location of the bird and bat boxes to be provided as part of the development hereby approved shall be submitted to and approved in writing by the Local Planning Authority and shall be installed in full

accordance with the approved details before occupation of the building and maintained in perpetuity.

Reason: To secure appropriate features to conserve and enhance wildlife habitats and biodiversity measures within the development (Policy G6 of the London Plan (March 2021) and Policy EN1 the Lambeth Local Plan (September 2021)).

25. **Greywater and rainwater re-use**

Prior to commencement of the above ground works, documentation shall be submitted to and approved in writing by the local planning authority assessing the feasibility of greywater and rainwater reuse. Where feasible these technologies will be implemented. Prior to first occupation of the development hereby approved, evidence (including a schedule of fittings, manufacturer's literature) shall be submitted to and approved in writing by the Local Planning Authority to show that the approved water efficient measures (BREEAM Wat02, Wat03 and Wat04) have been implemented.

Reason: To minimise water use (Policy SI5 of the London Plan 2021 and Policy EN6 of the Lambeth Local Plan (2021)).

26. **Water use**

Prior to commencement of the above ground works, documentation (Part G compliant calculations) shall be submitted to and approved in writing by the local planning authority demonstrating an internal residential water use of 105l/person/day or less. Prior to first occupation of the development hereby approved, evidence (including a schedule of fittings and manufacturer's literature) shall be submitted to the Local Planning Authority and approved in writing to show that a residential internal water use of 105L/person/day or less has been achieved for all dwellings.

Reason: To minimise water use (Policy SI5 of the London Plan 2021).

27. **SBD measures**

- a) Prior to commencement of the above ground works a scheme of security measures to minimise the risk of crime and to meet the principles and objectives of Secured by Design that would be incorporated in the development shall be submitted to and approved in writing by the Local Planning Authority in consultation with Metropolitan Police, Secure by Design. The development shall be implemented in accordance with the approved details prior to occupation.
- b) Prior to first occupation of the development a satisfactory Secured by Design inspection must take place. The resulting Secured by Design certificate shall be submitted to and approved in writing by the Local Planning Authority in consultation with Metropolitan Police, Secure by Design.

Reason: To ensure that the development maintains and enhances community safety (Policy D11 of the London Plan (March 2021) and Policy Q3 of the Lambeth Local Plan (September 2021)).

PRIOR TO OCCUPATION

28. **Fascia's/Signage**

Prior to first occupation of a new business in any unit/s in Use Class E(g)(i), details of the fascia and signage shall be submitted to and approved in writing by the Local Planning Authority and the development shall thereafter be implemented in full accordance with the approved details.

Reason: To prevent visual clutter, and to ensure a satisfactory external appearance to the design of the building. (Policies Q6 (Urban design: public realm) and Q8 Design quality: construction detailing) of the Lambeth Local Plan (September 2021)).

29. **External lighting**

- a) Prior to first occupation of the development a scheme for any external lighting that is to be installed at the site, including measures to prevent light spillage shall be submitted to and approved in writing by the local planning authority. The submitted details should demonstrate that the proposed lighting is the minimum needed for security and working purposes and that the proposals minimise pollution from glare and spillage.
- b) Any such external lighting as approved under part (a) shall be installed in accordance with the approved drawings before the development is first occupied, or in accordance with an agreed implementation strategy, and retained hereafter for the duration of the development in accordance with the approved details.

Reason: To ensure a high-quality standard of development to safeguard the character and appearance of the site and the local area and protect residential amenity of future occupiers (Policy D8 of the London Plan (March 2021) and Policies Q2, Q6, Q7 of the Lambeth Local Plan (September 2021)).

30. **Water use – non residential**

Prior to first occupation of the commercial parts of the development, evidence (including a schedule of fittings, manufacturer's literature and water use calculations) shall be submitted to and approved in writing by the Local Planning Authority to show that a 12.5% reduction in building baseline water consumption has been achieved.

Reason: To minimise water use (Policy SI5 of the London Plan 2021).

31. **Building materials**

Prior to first occupation of the development evidence shall be submitted to and approved in writing by the Local Planning Authority demonstrating that the materials used are in accordance with the approved sustainability statement.

Reason: To ensure that the development has an acceptable level of sustainability (Policy EN4 of the Lambeth Local Plan (September 2021)).

32. **National calculation method**

Prior to first occupation of the development evidence (e.g. photographs, copies of installation contracts and as-built worksheets prepared under the National Calculation Method) shall be submitted to and approved in writing by the local planning authority to demonstrate that the development has been carried out in accordance with the approved Energy Statement unless otherwise agreed by the local planning authority in writing.

Reason: To ensure that the development has an acceptable level of sustainability and it makes the fullest contribution to minimising carbon dioxide emissions (Policies SI 2 and SI 3 of the London Plan (March 2021), and Policy EN4 of the Lambeth Local Plan (September 2021)).

33. **Construction and demolition waste**
Prior to first occupation of the development evidence shall be submitted to and approved in writing by the Local Planning Authority to show that at least 95% of non-hazardous construction waste has been reused, recycled or recovered.
- Reason: To ensure that the development has an acceptable level of sustainability (Policy EN7 Lambeth Local Plan (September 2021)).
34. **Excavation material**
Prior to first occupation of the development evidence shall be submitted to and approved in writing by the Local Planning Authority to show that at least 95% of non-hazardous excavation waste has been used for beneficial uses.
- Reason: To ensure that the development has an acceptable level of sustainability (Policy EN7 of the Lambeth Local Plan (September 2021)).
35. **Overheating**
Prior to the occupation of the development evidence shall be submitted to and approved in writing by the Local Planning Authority demonstrating that the risk of overheating has been minimised and the reliance on air conditioning has been minimised in line with the GLA's cooling hierarchy and confirming compliance with CIBSE TM59 (including the results from the analysis) and that CIBSE TM49 has been considered. Any mitigation measures required to reduce overheating shall be completed prior to occupation and thereafter be retained for the lifetime of the development.
- Reason: To ensure the design of the development reduces (as far as is possible) the potential for overheating and reliance on air conditioning systems (Policies SI 2 and SI 4 of the London Plan (March 2021)) and Policy EN4 of the Lambeth Local Plan (September 2021).
36. **Whole life carbon**
Prior to the occupation of the development the postconstruction tab of the GLA's whole life carbon assessment template shall be completed accurately and in its entirety in line with the GLA's Whole Life Carbon Assessment Guidance. The post-construction assessment should provide an update of the information submitted at planning submission stage, including the whole life carbon emission figures for all life-cycle modules based on the actual materials, products and systems used. This should be submitted to the GLA at: ZeroCarbonPlanning@london.gov.uk, along with any supporting evidence as per the guidance. Confirmation of submission to the GLA shall be submitted to and approved in writing by the local planning authority prior to occupation of the development.
- Reason: To ensure that the development has an acceptable level of sustainability and it makes the fullest contribution to minimising carbon dioxide emissions (Policies SI 2 and SI 3 of the London Plan (March 2021), and Policy EN4 of the Lambeth Local Plan (September 2021)).
37. **Circular economy**
Prior to the occupation of the development a Post-Completion Report setting out the predicted and actual performance against all numerical targets in the approved Circular Economy Statement shall be submitted to the GLA at: CircularEconomyLPG@london.gov.uk, along with any supporting evidence as per the GLA's Circular Economy Statement Guidance. The Post Completion Report shall provide updated versions of Tables 1 and 2 of the Circular Economy

Statement, the Recycling and Waste Reporting form and Bill of Materials. Confirmation of submission to the GLA shall be submitted to and approved in writing by the local planning authority prior to occupation of the development.

Reason: To ensure that the development has an acceptable level of sustainability and it makes the fullest contribution to minimising carbon dioxide emissions (Policies SI 2 and SI 3 of the London Plan (March 2021), and Policy EN4 of the Lambeth Local Plan (September 2021)).

38. **BREEAM**

- a) Within six months of work starting on site a BREEAM New Construction V6 Offices, Shell and Core, Design Stage (Interim) certificate and summary score sheet shall be submitted to and approved in writing by the local planning authority to show that an Excellent rating (minimum score 70%) has been achieved for the new build offices development.
- b) Within six months of occupation of the development hereby permitted, a BREEAM New Construction V6 Offices, Shell and Core, Post Construction Review (Final), certificate and summary score sheet shall be submitted to and approved in writing by the local planning authority to show that an Excellent rating (minimum score 70%) has been achieved the new build offices development.
- c) Within six months of refurbishment and fitout work starting on site a BREEAM Refurbishment and Fitout 2014 Parts 3 and 4, Design Stage (Interim) certificate and summary score sheet shall be submitted to and approved in writing by the local planning authority to show that an Excellent rating (minimum score 70%) has been achieved for the refurbishment of the development.
- d) Within six months of occupation of the commercial development hereby permitted, a BREEAM Refurbishment and Fitout 2014 Parts 3 and 4, Post Construction Review (Final) certificate and summary score sheet shall be submitted to and approved in writing by the local planning authority to show that an Excellent rating (minimum score 70%) has been for the refurbishment of the development.

Reason: To ensure that the development has an acceptable level of sustainability (Policy EN4 of the Lambeth Local Plan (September 2021)).

39. **Energy strategy monitoring**

Prior to occupation of the development hereby permitted, updated accurate and verified 'as-built' design estimates of the 'Be Seen' energy performance indicators for the development, as per the methodology outlined in the 'As-built stage' chapter / section of the GLA 'Be Seen' energy monitoring guidance (or any document that may replace it), together with supporting evidence, shall be submitted to the GLA using the 'Be Seen' as-built stage reporting webform (<https://www.london.gov.uk/what-we-do/planning/implementing-london-plan/london-plan-guidance-and-spgs/be-seen-energy-monitoring-guidance>). It shall also be confirmed that suitable monitoring devices have been installed and maintained for the monitoring of the in-use energy performance indicators, as outlined in the 'In-use stage' of the GLA 'Be Seen' energy monitoring guidance document (or any document that may replace it).

Reason: To ensure that the development has an acceptable level of sustainability and it makes the fullest contribution to minimising carbon dioxide emissions (Policies SI 2 and SI 3 of the London Plan (March 2021) and Policy EN4 of the Lambeth Local Plan (September 2021)).

40. **Delivery and servicing plan**

Prior to the first occupation of the development a full Delivery and Servicing Plan (DSP) that is prepared in conformity with the submitted Framework Construction Traffic Management Plan

(prepared by Markides Associates, revision C, dated 18.01.2024) shall be submitted to and approved in writing by Local Planning Authority. The DSP shall cover both the residential and non-residential elements of the development and include full details of the onsite Refuse Management Strategy. The development shall be carried out in accordance with the details so agreed and shall be retained as such thereafter.

Reason: To ensure that the delivery arrangements to the building as a whole are appropriate and to limit the effects of the increase in travel movements (Policy T7 of the London Plan (March 2021) and Policy T7 of the Lambeth Local Plan (September 2021)).

41. **Travel plan**

Prior to the first occupation of the development a full Travel Plan that is prepared in conformity with the submitted Framework Construction Traffic Management Plan (prepared by Markides Associates, revision C, dated 18.01.2024) shall be submitted to and approved in writing by Local Planning Authority. The full Travel Plan shall cover both the residential and non-residential elements of the development. The development shall be carried out in accordance with the details so agreed and shall be retained as such thereafter.

Reason: To ensure that the travel arrangements to the site are appropriate and to limit the effects of the increase in travel movements (Policy T4 of the London Plan (March 2021) and Policies D4, T1 and T6 of the Lambeth Local Plan (September 2021)).

42. **Waste management**

Prior to the occupation of the development hereby permitted, details of waste and recycling storage for the development shall be submitted to and approved in writing by the local planning authority. The waste and recycling storage shall be provided in accordance with the approved details prior to the occupation of the development hereby permitted, and shall thereafter be retained solely for its designated use. The waste and recycling storage areas/facilities should comply with the Lambeth's Refuse & Recycling Storage Design Guide (2022) and Lambeth's Waste & Recycling Storage and Collection Requirements Guidance (2023), unless it is demonstrated in the submissions that such provision is inappropriate for this specific development.

Reason: To ensure suitable provision for the occupiers of the development, to encourage the sustainable management of waste and to safeguard the visual amenities of the area (Policies Q2 and Q12 of the Lambeth Local Plan (2021)).

43. **Non-road-mobile machinery (NRMM)**

No Non-Road Mobile Machinery (NRMM) shall be used on the site unless it is compliant with the NRMM Low Emission Zone requirements (or any superseding requirements). An inventory of all NRMM must be kept on site during the demolitions, site preparation and construction phases. All machinery should be regularly serviced, and service logs kept on site for inspection. Records should be kept on site which details proof of emission limits for all equipment. This documentation should be made available to Local Planning Authority officers as required until development completion.

Reason: To ensure that air quality is not adversely affected by the development (Policy SI 1 of the London Plan (March 2021), Policy EN4 of the Lambeth Local Plan (September 2021), and the Mayor's SPG: The Control of Dust and Emissions during Construction and Demolition (July 2014)).

44. **PV panels**
Prior to the installation of the photovoltaic panels, a scheme showing the siting, size, number and design of the photovoltaic (PV) arrays, including cross sections of the roof of the building with the equipment in situ, shall be submitted to and approved in writing by the local planning authority. The development shall thereafter be completed in strict accordance with the approved details.

Reason: To safeguard the appearance of the completed development and to ensure that the development has an acceptable level of sustainability (Policies SI 2 and SI 3 of the London Plan (2021), and Policies EN4, Q2, Q7 and Q8 of the Lambeth Local Plan (2021)).

45. **Cycle parking**
Prior to occupation of the development hereby permitted, details of the cycle parking shall be submitted to and approved in writing by the local planning authority. This shall include provision for at least 10% of the long stay cycle spaces being provided with electric charging plugs and electrical infrastructure. The cycle parking shall be installed in full accordance with the approved details prior to occupation of the development. The cycle parking shall thereafter be retained solely for its designated use.

Reason: To ensure adequate cycle parking is available on site and to promote sustainable modes of transport (Policy T5 of the London Plan (2021), and Policies T1, T3 and Q13 of the Lambeth Local Plan (2021)).

46. **Flooding and drainage**
No development shall be brought in to use/occupied until a management and maintenance plan of the final surface water management system and associated pipework has been submitted to and approved in writing by the local planning authority. The plan must consider the management and maintenance for the lifetime of the development which shall include the arrangements made to secure the operation of the scheme. The approved plan shall be implemented in full in accordance with the agreed terms and conditions.

Reason: To ensure there are clear arrangements in place for ongoing maintenance over the lifetime of the development (Government ministerial statement HCWS161).

47. **Tree Protection**
No demolition or development shall commence until a Tree Protection Plan has been submitted to and approved in writing by the local planning authority and until the measures of tree protection identified in the approved Tree Protection Plan have been fully implemented. The Tree Protection Plan shall thereafter be retained and maintained for the duration of the demolition and construction period.

Reason: Development must not commence before this condition is discharged to ensure the retention of, and avoid irrevocable damage to, the retained tree on Union Road adjacent to the site that represent an important visual amenity to the locality and the wider surrounding area (Policy Q10 of the Lambeth Local Plan (2021)).

Informatives:

1. This decision letter does not convey an approval or consent which may be required under any enactment, by-law, order or regulation, other than Section 57 of the Town and Country Planning Act 1990.

2. This permission is subject to a Section 106 of the Town and Country Planning Act 1990 legal agreement. The legal agreement shall be read in conjunction with the associated officer report and decision notice. There might be a number of obligations that would need to be discharged. To discharge obligation/s from the Section 106 Legal Agreement you must submit an application to the Local Planning Authority in accordance with the Town and Country Planning (Modification and Discharge of Planning Obligations) Regulations 1992.
3. All relevant planning conditions must be discharged in accordance with the triggers given. Requests to discharge conditions must be made by formal application. Fees are £116 per request.
4. Your attention is drawn to the provisions of the Building Regulations, and related legislation which must be complied with to the satisfaction of the Council's Building Control Officer.
5. Your attention is drawn to the need to comply with the requirements of the Control of Pollution Act 1974 concerning construction site noise and in this respect you are advised to contact the Council's Environmental Health Division.
6. Your attention is drawn to the provisions of The Party Wall Act 1996 in relation to the rights of adjoining owners regarding party walls etc. These rights are a matter for civil enforcement and you may wish to consult a surveyor or architect
7. You are advised of the necessity to consult the Council's Highways team prior to the commencement of construction at drw@lambeth.gov.uk in order to obtain necessary approvals and licences prior to undertaking any works within the Public Highway including Scaffolding, Temporary/Permanent Crossovers, Oversailing/Undersailing of the Highway, Drainage/Sewer Connections, Hoarding, Excavations (including adjacent to the highway such as basements, etc), Temporary Full/Part Road Closures, Craneage Licences etc.
8. You are advised of the necessity to consult the Council's Highway Team at drw@lambeth.gov.uk, with regard to any alterations affecting the public footway.
9. As soon as building work starts on the development, you must contact the Street Naming and Numbering Officer if you need to do the following:
 - a) name a new street
 - b) name a new or existing building
 - c) apply new street numbers to a new or existing building

This will ensure that any changes are agreed with Lambeth Council before use, in accordance with the London Buildings Acts (Amendment) Act 1939 and the Local Government Act 1985. Although it is not essential, we also advise you to contact the Street Naming and Numbering Officer before applying new names or numbers to internal flats or units. Contact details are listed below.

- Street Naming and Numbering Officer
- e-mail: streetnn@lambeth.gov.uk
- tel: 020 7926 2283
- fax: 020 7926 9104

10. The applicant is advised to contact London Underground Infrastructure Protection in advance of preparation of final design and associated method statements, in particular with regard to: demolition; excavation and construction methods.
11. The applicant must seek the continual advice of the Metropolitan Police Service Designing Out Crime Officers (DOCOs) to achieve accreditation. The services of MPS DOCOs are available free of charge and can be contacted via docomailbox.SE@met.police.uk

Notes to Applicants:

In dealing with this application the Council has implemented the requirement in the National Planning Policy Framework (2024) to work with the applicant in a positive and proactive manner. The council has made available on its website the policies and guidance provided by Lambeth Local Plan 2020-2035 (September 2021) and its supplementary planning documents. We also offer a full pre-application advice service in order to ensure that the applicant has every opportunity to submit an application that's likely to be considered acceptable.

Yours sincerely

Rob Bristow

Director of Planning, Transport and Sustainability
Growth and Environment Directorate

Date printed:

INFORMATION FOR APPLICANTS GRANTED PLANNING PERMISSION SUBJECT TO CONDITIONS, OR WHERE PERMISSION HAS BEEN REFUSED.

General Information

This permission is subject to due compliance with any local Acts, regulations, building by-laws and general statutory provisions in force in the area and nothing herein shall be regarded as dispensing with such compliance or be deemed to be a consent by the Council thereunder.

Your attention is drawn to the provisions of the Building Regulations 1985 and related legislation which must be complied with to the satisfaction of the Council's Building Control Officer, PO Box 80771, London SW2 9QQ.

The Council's permission does not modify or affect any personal or restrictive covenants, easements, etc., applying to or affecting the land or the rights of any person entitled to the benefits thereof.

STATEMENT OF APPLICANT'S RIGHTS ARISING FROM THE REFUSAL OF PLANNING PERMISSION OR FROM THE GRANT OF PERMISSION SUBJECT TO CONDITIONS.

Appeals to the Secretary of State

If the applicant is aggrieved by the decision of the local planning authority to refuse permission or approval for the proposed development or to grant permission or approval subject to conditions, he may appeal to the Secretary of State in accordance with Section 78 of the Town and Country Planning Act 1990 within six months from the date of this notice. Appeals must be made on a form which is obtainable from The Planning Inspectorate, Room 3/13 Temple Quay House, 2 The Square, Temple Quay, Bristol BS1 6PN. Alternatively an Appeal form can be downloaded from their website at <https://www.gov.uk/appeal-planning-decision>. The Secretary of State has power to allow longer period for the giving of a notice of appeal but he will not normally be prepared to exercise this power unless there are special circumstances which excuse the delay in giving notice of appeal. The Secretary of State is not required to entertain an appeal if it appears to him that permission for the proposed development could not have been granted by the local planning authority, or could not have been so granted otherwise than subject to the conditions imposed by them, having regard to the statutory requirements, to the provisions of the development order, and to any directions given under the order.

Purchase Notice

If permission to develop land is refused or granted subject to conditions, whether by the local planning authority or by the Secretary of State for the Environment, and the owner of the land claims that the land has become incapable of reasonably beneficial use in its existing state and cannot be rendered capable of reasonable beneficial use by the carrying out of any development which has been or would be permitted, he may serve on the London Borough of Lambeth a purchase notice requiring that Council to purchase his interest in the land in accordance with the provisions of Section 137 of the Town and Country Planning Act 1990.

Compensation

In certain circumstances, a claim may be made against the local planning authority for compensation, where permission is refused or granted subject to conditions by the Secretary of State for the Environment on appeal or on a reference of the application to him. The circumstances in which such compensation is payable are set out in Section 120 and related provision of the Town and Country Planning Act 1990.

Appendix 2 – List of main planning policies

London Plan (2021)

- GG1 Building strong and inclusive communities
- GG2 Making the best use of land
- GG3 Creating a healthy city
- GG4 Delivering the homes Londoners need
- GG5 Growing a good economy
- SD10 Strategic and local regeneration
- D1 London's form, character and capacity for growth
- D2 Infrastructure requirements for sustainable densities
- D3 Optimising site capacity through the design-led approach
- D4 Delivering good design
- D5 Inclusive design
- D6 Housing quality and standards
- D7 Accessible housing
- D8 Public realm
- D13 Agent of Change
- D14 Noise
- H1 Increasing housing supply
- H4 Delivering affordable housing
- H5 Threshold approach to applications
- H6 Affordable housing tenure
- H10 Housing size mix
- S4 Play and informal recreation
- E1 Offices
- E2 Providing suitable business space
- E11 Skills and opportunities for all
- HC1 Heritage conservation and growth
- HC3 Strategic and Local Views
- G1 Green infrastructure
- G5 Urban greening
- G6 Biodiversity and access to nature
- G7 Trees and woodlands
- SI 1 Improving air quality
- SI 2 Minimising greenhouse gas emissions
- SI 3 Energy infrastructure
- SI 4 Managing heat risk
- SI 5 Water infrastructure
- SI 8 Waste capacity and net waste self-sufficiency
- SI 12 Flood risk management
- SI 13 Sustainable drainage
- T1 Strategic approach to transport
- T2 Healthy Streets
- T3 Transport capacity, connectivity
- T4 Assessing and mitigating transport impacts
- T5 Cycling
- T6 Car parking
- T7 Deliveries, servicing and construction

DF1 Delivery of the Plan and Planning Obligations

M1 Monitoring

Regional Guidance

Relevant publications from the GLA include:

- Accessible London SPG (2014)
- Air Quality Neutral LPG (2023)
- Air Quality Positive LPG (2023)
- ‘Be Seen’ energy monitoring guidance LPG (2021)
- Character and Context SPG (2014)
- Characterisation and Growth Strategy LPG (2023)
- Circular Economy Statements LPG (2022)
- The Control of Dust and Emissions During Construction and Demolition SPG (2014)
- Digital Connectivity Infrastructure LPG (2024)
- *Draft* Development Viability LPG (2023)
- Energy Assessment Guidance (2022)
- Housing Design Standards LPG (2023)
- London View Management Framework SPG (2012)
- Optimising site capacity: A design-led approach LPG (2023)
- Planning for Equality and Diversity in London SPG (2007)
- Social Infrastructure SPG (2015)
- Sustainable Transport, Walking and Cycling LPG (2022)
- Urban Greening Factor LPG (2023)
- Whole Life-Cycle Carbon Assessments LPG (2022)

Lambeth Local Plan 2020-2035 (2021)

D1 Delivery and monitoring

D2 Presumption in favour of sustainable development

D3 Infrastructure

D4 Planning obligations

H1 Maximising housing growth

H2 Delivering affordable housing

H4 Housing mix in new developments

H5 Housing standards

ED1 Offices

ED15 Employment and training

S2 New or improved social infrastructure

T1 Sustainable travel

T2 Walking

T3 Cycling

T4 Public transport infrastructure

T6 Parking

T7 Servicing

T9 Digital connectivity infrastructure

EN1 Open space, green infrastructure and biodiversity

EN3 Decentralised energy

EN4 Sustainable design and construction

EN5 Flood risk
EN6 Sustainable drainage systems and water management
EN7 Sustainable waste management
Q1 Inclusive environments
Q2 Amenity
Q3 Safety, crime prevention and counter terrorism
Q5 Local distinctiveness
Q6 Urban design: public realm
Q7 Urban design: new development
Q8 Design quality: construction detailing
Q9 Landscaping
Q10 Trees
Q12 Refuse and recycling
Q13 Cycle storage
Q20 Statutory listed buildings
Q22 Conservation areas
Q23 Non-designated heritage assets: local heritage list
Q25 Views

Local Guidance / Supplementary Planning Documents (SPD)

Relevant local guidance and SPDs for Lambeth include:

- Design Guide SPD (2023)
- *Draft* Lambeth Local Views SPD (2024)
- Advertising & Signage Guidance (2016)
- Marketing of Employment Premises and Sites Guidance Note (2015)
- Parking Survey Guidance Note
- Refuse & Recycling Storage Design Guide (2022)
- Conservation Area statements

Other guidance

- BRE Site layout planning for daylight and sunlight (Third edition, 2022)

Appendix 3 – List of consultees

External consultees

Historic England Archaeology
L.F.C.D Authority
London Ecology Unit
London underground
Metropolitan Police – Design Out Crime Officer
Thames Water
Transport for London (TfL)
UK Power Network

Internal consultees

Arboricultural Officer
Conservation and Design
Development Infrastructure
Energy and Sustainability (Blewburton)
Enterprise/Employment
Environmental Health (RSS)
Flood Risk
Highways
Housing
Landscape
Neighbourhood Regeneration Project Manager
Regeneration team
Planning Policy
Transport
Waste Contractor

Other consultees

Durand Gardens Residents Association
Kennington Park Estate Tenants Association
Lansdowne Gardens Conservation Area Residents
Stockwell Park Residents Association

Appendix 4 – Site photographs



Photo 1: Application building and Singers Mews development to the north



Photo 2: Junction between Clapham Road and Union Road showing Phoenix PH (left) and the application site (right)



Photo 3 (left): Site elevation of the application building showing the difference in build line along Clapham Road

Photo 4 (right): View from Union Road towards Clapham Road

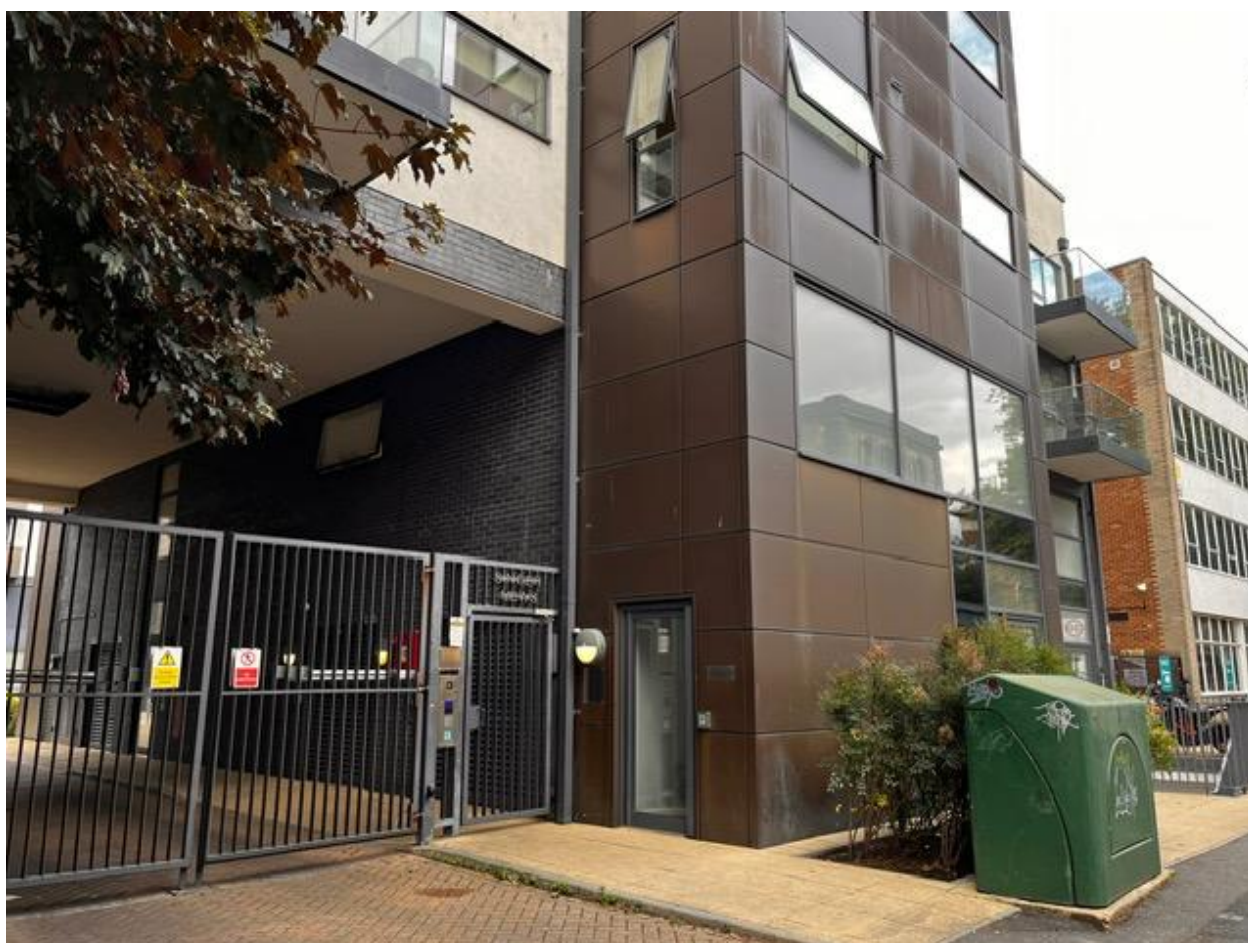


Photo 5: View from Union Road towards Clapham Road

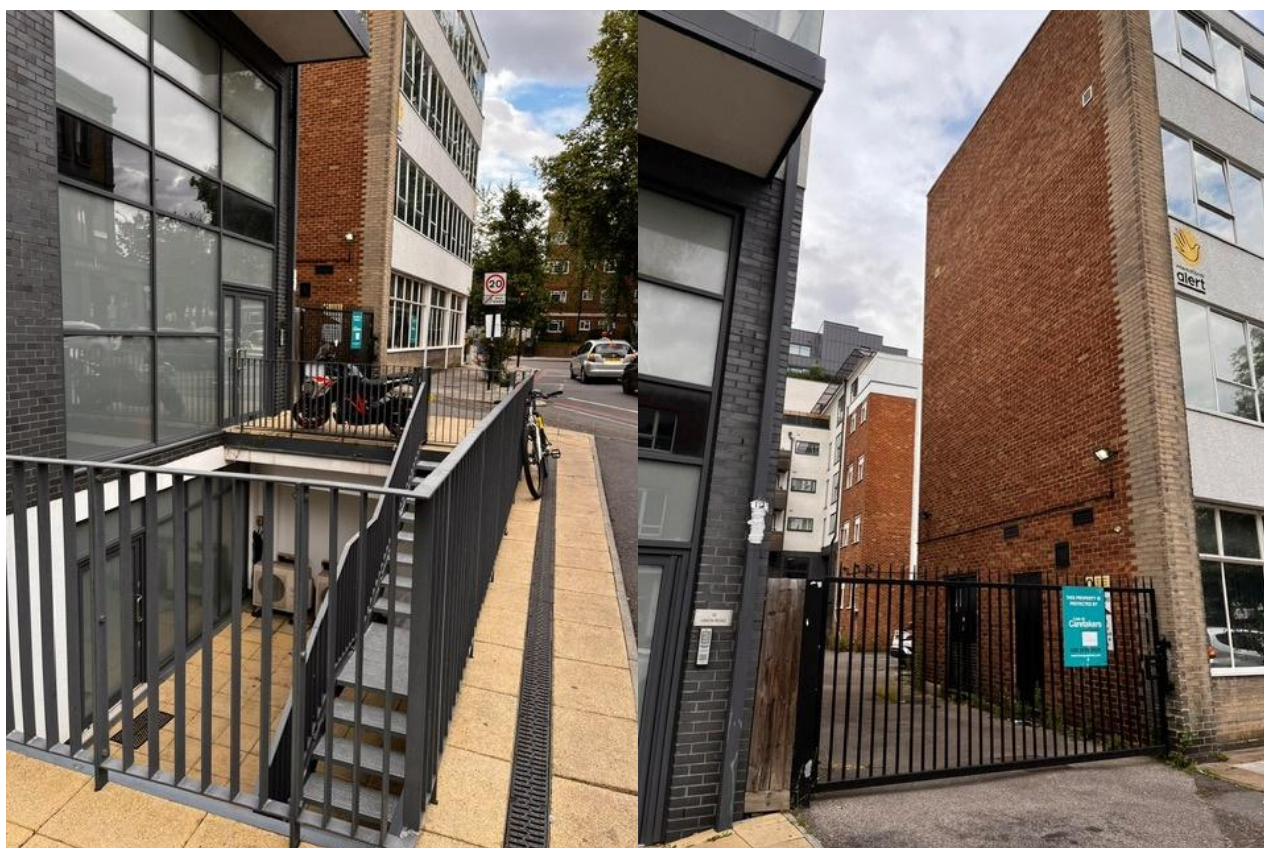


Photo 6 (left): View from Union Road towards Clapham Road

Photo 7 (right): Vehicular access to Site



Photo 8: View from Union Road towards Clapham Road



Photo 9: View on Clapham Road towards Site and junction with Union Road